



INTERNAL DISPLACEMENT

Global Overview of Trends and Developments in 2005



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INTERNAL DISPLACEMENT

Global Overview of Trends and Developments in 2005

March 2006

A displaced women
with her children in
Bukamba, Rwanda.
(Photo: A. Birkenes/IDMC)



Contributors:

Dina Abou Samra (Middle East, children), Christophe Beau (political participation), Jesse Bernstein (civil society), Arild Birkenes (Latin America), Jens-Hagen Eschenbächer (global trends and developments), Mpako Foaleng (conflict research), Tone Faret (Asia, post-conflict situations), Barbara McCallin (Europe, property issues), Claudia McGoldrick (Africa, peace-keeping operations), Fredrik Kok (Asia), Aninia Nadig (health and nutrition), Greta Zeender (women, non-state actors).

Edited by Jens-Hagen Eschenbächer

Cover photo:

Internally displaced women walk in the rain for food distribution at Olwal camp in northern Uganda.
(Photo: Reuters/Radu Sigheti, courtesy www.alertnet.org)

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Norwegian Refugee Council

Chemin de Balxert 7-9

CH-1219 Châtelaine (Geneva), Switzerland

Tel.: +41 22 799 07 00, Fax: +41 22 799 07 01

www.internal-displacement.org

The Internal Displacement Monitoring Centre

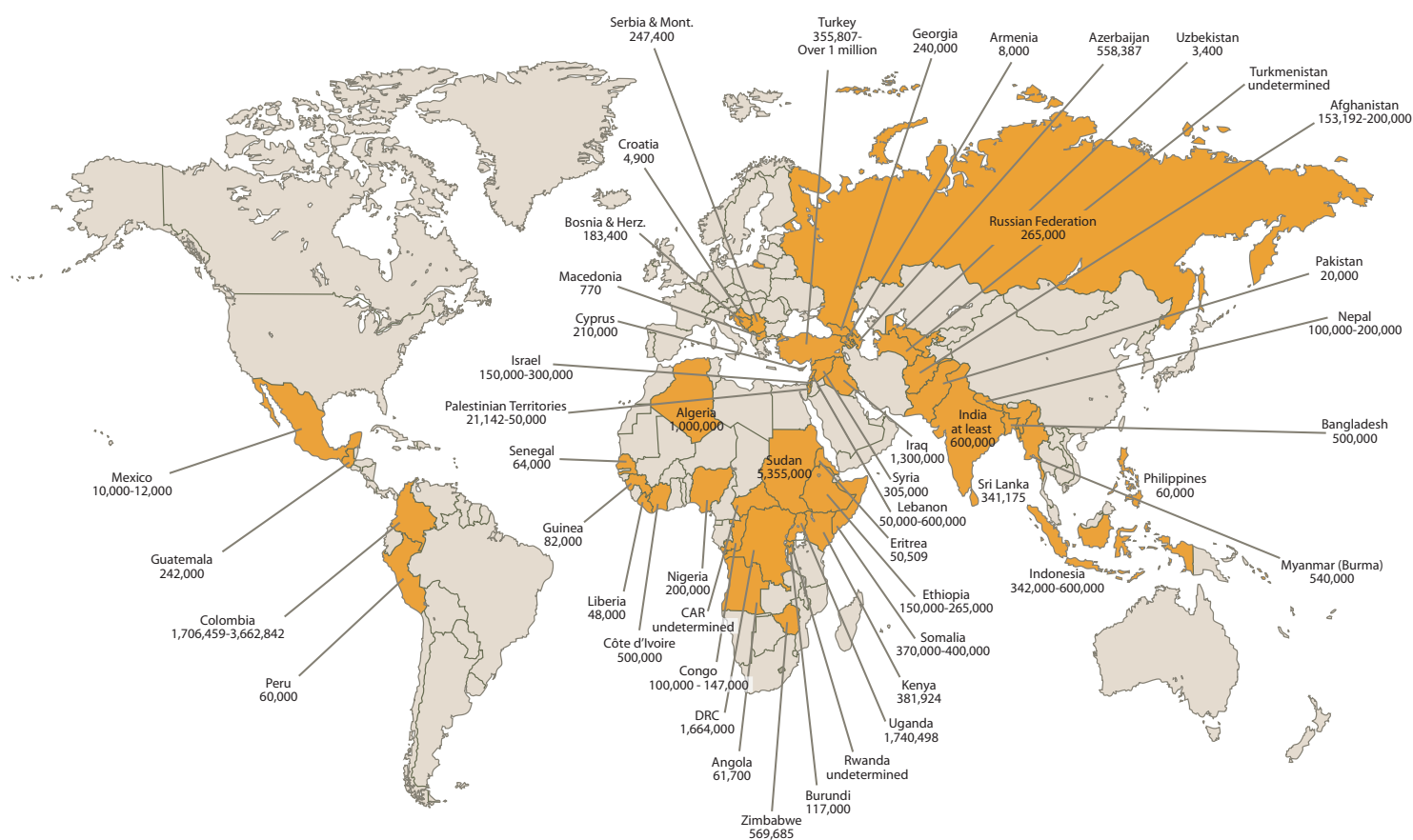
The Internal Displacement Monitoring Centre, established by the Norwegian Refugee Council, monitors conflict-induced internal displacement worldwide at the request of the United Nations.

The Geneva-based Centre runs an online database providing comprehensive and regularly updated information and analysis on internal displacement in some 50 countries.

This report is based on information included in the online IDP database. For more details on the displacement situations in specific countries, or references to sources used in the report, please visit the database at

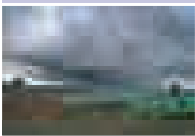
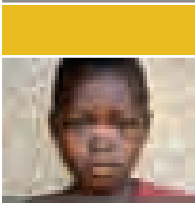
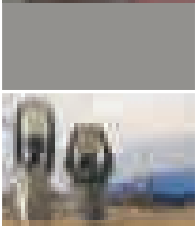
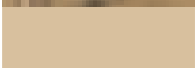
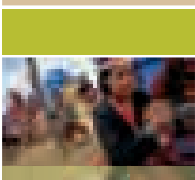
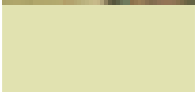
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Internally Displaced People Worldwide 2005



The map shows the most recent available estimates for each country affected by conflict-induced internal displacement. The figures come from a variety of different sources. In several cases, estimates have not been updated recently, or do not cover all parts of a country or certain groups of IDPs. See the table in the Annex for a full annotated list of IDP estimates by country, including sources and dates.

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Facts and Figures at a Glance



Total IDP population:	23.7 million (December 2005)
Number of countries affected	At least 50
Number of separate IDP situations monitored	63
Worst affected continent:	Africa (12.1 million IDPs in 20 countries)
Largest internal displacement situations:	Sudan (5.4 million IDPs), Colombia (up to 3.7 million), Uganda (2 million), DRC (1.7 million), Iraq (1.3 million)
Number of conflicts generating displacement in 2005:	27
Major new displacement during 2005:	Zimbabwe, DRC, Colombia, Iraq, Sudan
Major return movements during 2005:	DRC, Sudan, Liberia, Iraq
Worst displacement situations:	Burma (Myanmar), Sudan, DRC, Zimbabwe, Côte d'Ivoire, Colombia, Iraq, Somalia, Uganda, Nepal
Estimated number of IDPs at risk of death through violence:	14 million
Governments or occupation forces directly or indirectly involved in displacing people in 2005:	Burma (Myanmar), Central African Republic, Colombia, Côte d'Ivoire, Indonesia (West Papua), Iraq, Mexico, Nepal, Pakistan, Israel (Palestinian Territories), Philippines, Russian Federation (Chechnya), Sudan (Darfur), Togo, Turkmenistan, Zimbabwe
Estimated number of IDPs without any significant humanitarian assistance from their governments	Nearly 6 million in at least 12 countries
Estimated number of IDPs unprotected by their governments	6 million in at least 13 countries
Number of countries without UN involvement in IDP assistance or protection	16 (nearly one third of all countries affected)
Proportion of women and children among IDPs	70-80%

2 Foreword

The Internal Displacement Monitoring Centre (IDMC) of the Norwegian Refugee Council is pleased to present its Global Overview of trends and developments with regard to internal displacement covering the year 2005.

The report provides an analysis of the worldwide internal displacement crisis, at both global and regional levels, and includes sections highlighting a number of key thematic areas relevant to the lives of internally displaced people (IDPs). It is based on the wealth of information in the IDMC's online IDP database, which contains detailed profiles of internal displacement situations in some 50 countries worldwide.

We hope that this report – the only comprehensive yearly overview of global IDP-related developments – will serve to increase awareness and understanding of the worldwide internal displacement crisis and thus contribute to efforts aimed at improving national and international responses.

As the report clearly shows, little progress was made in 2005 with regard to preventing internal displacement and responding to the humanitarian and protection needs of the displaced in a timely and systematic manner.

National governments bear the main responsibility for this massive humanitarian and human rights crisis affecting over 20 million people worldwide. A disturbingly high number of governments not only failed to

provide adequate assistance to IDPs on their territory but, worse, were themselves behind the deliberate displacement of parts of their population. The international community is to blame as well – for insufficient efforts at the political level to prevent or end conflicts and for the continued failure to set up a credible response to the needs of one of the world's most-neglected groups.

There have been a number of promising new initiatives at the international level in 2005 to reform the humanitarian response system. But even if these reforms are fully implemented, much more decisive action is needed, in particular at the political level, to bring an end to the conflicts causing displacement and address their root causes in a serious and comprehensive way. Only then will it be possible to contain and eventually solve the global IDP crisis by preventing further displacement and creating conditions for the sustainable return or resettlement of the displaced.

Elisabeth K. Rasmussen

NRC Resident Representative and Head of the
Internal Displacement Monitoring Centre



A girl visiting a school for displaced children in northern Uganda. (Photo: Liba Taylor)

The Global Internal Displacement Crisis: Trends and Developments

Who is an internally displaced person?

Internally displaced people – or IDPs – have been forced to flee their homes because their lives were at danger, but unlike refugees they have not crossed an international border. Many IDPs remain exposed to violence, hunger and diseases during their displacement and are subject to a multitude of human rights violations. Although IDPs outnumber refugees by nearly two to one, their plight receives far less international attention.

While refugees are eligible to receive international protection under the 1951 Refugee Convention and its 1967 Protocol, the international community is not under the same legal obligation to protect internally displaced people. National governments have the primary responsibility for the security and well-being of all displaced people on their territory, but often they are unable or unwilling to live up to this obligation as defined by the Guiding Principles on Internal Displacement, the set of relevant international standards. In the absence of a single agency mandated to help IDPs, the international community has been trying to work together to develop adequate responses to the needs of the displaced within the framework of the “collaborative response”.

In addition to the IDPs uprooted by conflicts and human rights violations, which are the focus of this report, there are also millions of people who have been internally displaced by natural disasters such as the December 2004 Indian Ocean tsunami and, in 2005, hurricane Katrina and the south Asia earthquake. Many more have been evicted from their homes in relation to development projects.

Slight decrease in IDP figures

The Internal Displacement Monitoring Centre estimates that at the end of 2005 some 23.7 million people were displaced within their own countries as a result of conflict and gross human rights violations, some 1.6 million fewer than the previous year¹.

For the first time in nearly a decade, the estimated total number of internally displaced persons (IDPs) went down by a considerable margin during the year. From the second half of the 1990s onwards, the global IDP figure had increased dramatically to reach 25 million in 2001 and then remained almost unchanged at that level until 2004 (see *chart 1*), as year after year the scale of return movements or resettlements had been matched by equally large numbers of new displacements.

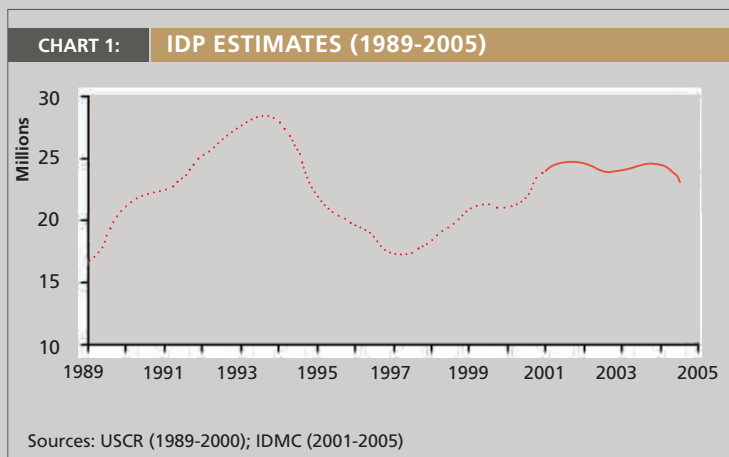
The decrease observed in 2005 appears to reflect a real trend, and is only to a lesser extent due to re-registrations or revisions of estimates not based on actual population movements or resettlements. In fact, the number of IDPs who were able to return during 2005 – an estimated 3.8 million – was almost double the number of people newly displaced in the course of the year (2.1 million). Compared to the previous year, significantly more people were able to return to their homes – the majority of them in the Democratic Republic of Congo (DRC) – and far fewer were forced to flee their homes. However, in most cases there were serious concerns about the sustainability of returns as conditions in return areas were generally not conducive to lasting reintegration.

Scope of global IDP crisis remains alarming

Despite the slight decrease in IDP figures recorded in 2005, the scope of the global internal displacement crisis remained alarming. Some 50 countries across Africa, America, Asia, Europe and the Middle East were affected by conflict-induced internal displacement in 2005. A number of countries had two or more separate conflict situations causing displacement; altogether



Displaced Ugandan children playing musical instruments made out of basic materials. (Photo: Giacomo Pirozzi)



the IDMC monitored 63 separate IDP situations during the year. There were still nearly twice as many IDPs in the world as there were refugees (see *chart 2*)².

Africa continued to be the continent most affected by internal displacement. Over 12 million people were displaced there in some 20 countries at the end of 2005, more than in the rest of the world taken together (see *chart 3*).

With well over five million IDPs, Sudan remained the country with the world's largest IDP population. Other countries with more than one million IDPs include Colombia (up to 3.7 million), Uganda (2 million), the DRC (1.7 million³) and Iraq (over one million). Burma (Myanmar) and Turkey also have IDP populations estimated to be close to – or even exceeding – one million.

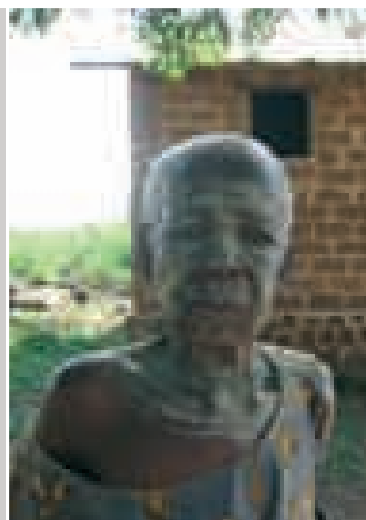
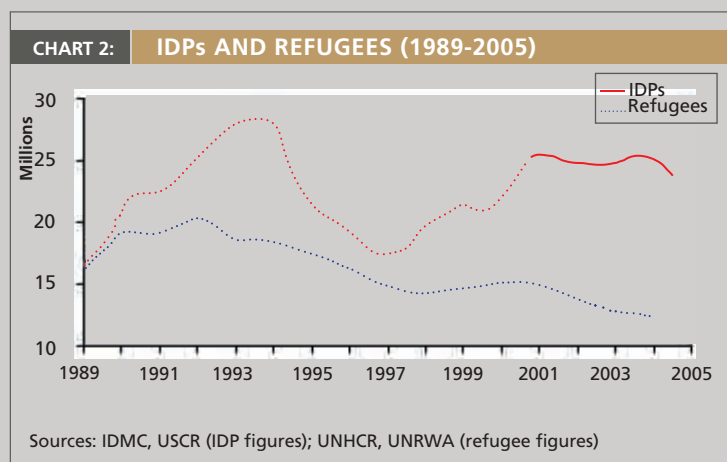
The DRC and Zimbabwe were the countries with most people newly displaced in 2005. In Zimbabwe, some 570,000 people were evicted from their homes by the government in a “clean-up” operation widely believed to have been aimed at intimidating the urban poor and preventing mass protests and uprisings. In the DRC, at least half a million were displaced by continued violence in the eastern provinces. In Colombia, up to 250,000 people were uprooted during the year, many of them as a result of fighting between right-wing paramilitaries and leftist guerrillas over control of drug trafficking routes. In Iraq, military operations

by national and US-led forces caused the often temporary displacement of an estimated 200,000 people. And in Sudan's Darfur region, brutal attacks on the civilian population by government-backed militias continued throughout the year and led to the displacement of tens of thousands of people.

Only one new conflict causing significant displacement erupted in the past year: the political violence accompanying Togo's presidential elections in April 2005. The IDMC also followed new small-scale displacement situations in Chad, Haiti, southern Thailand and northern Yemen, although very little information was available on the situation of IDPs in these countries⁴.

The largest return movements took place in the DRC and southern Sudan. In the DRC, 1.6 million IDPs are estimated to have gone back home⁵ as security continued to improve in some parts of the country following

CHART 3 IDP estimates by region (2004)		
Region	Countries	IDPs (mln.)
Africa	20	12.1
Americas	4	4
Asia	11	2,8
Europe	10	2,7
Middle East	5	2.1
Total	50	23,7



A displaced elderly woman in Côte d'Ivoire. (Photo: Claudia McGoldrick/IDMC)

the 2003 peace agreement, most of them spontaneously and without assistance. In Sudan, the signing of a peace deal between the government and southern-based rebels in January 2005 triggered the return of some 500,000 IDPs, although conditions in return areas in the south were far from conducive to sustainable reintegration. Concerns persisted also about return conditions in Liberia, where the international community assisted over 200,000 people to go back to their homes during 2005. Iraq also was among the countries with significant but often unsustainable return movements in 2005.

Absence of political solutions prolongs displacement

Most of the large-scale return movements observed during 2005 took place in countries where peace agreements had ended civil wars and created confidence among IDPs that it was safe to go home. In the majority of countries affected by internal displacement, however, such political solutions remained distant and little was done to address the underlying root causes of conflicts. As a result, significant new displacements caused by fighting or other forms of violence were reported in at least 13 countries during the year.

In even more countries, the absence of political solutions, or lack of implementation thereof, simply per-

petuated existing situations of displacement – without necessarily generating more IDPs, but also making it impossible for the displaced to return. Nearly half of the 63 IDP situations monitored by the IDMC fall into this category. Most IDPs are stuck in displacement for several years, many even for decades. In 2005, the average length of the conflicts that have caused displacement or prevented return was 15 years.

Why fewer conflicts does not equal fewer IDPs

The number of international and intra-state conflicts has fallen dramatically by about 40 per cent since the end of the Cold War⁶. During 2005 alone, the number of high-intensity intra-state conflicts went down from 37 to 24⁷. While this trend has led to a continuous reduction in the world's refugee population over the past years, it has not had a similar effect on the scale of the global internal displacement crisis (see *chart 4, p. 14*). In fact, available estimates suggest that, except for a brief drop in the mid-1990s, the number of IDPs has remained above 20 million for most of the post-Cold War period.

This can partly be explained by the fact that international attention to the phenomenon of internal displacement has increased significantly since the early 1990s⁸. Although there still is a glaring lack of IDP-related information and functioning monitoring

Settlement for displaced Roma in Mitrovica, Kosovo. (Photo: Elisabeth Rasmusson/IDMC)



mechanisms at the country level, more and better data is available on the numbers of IDPs today than there was a decade ago. The improved availability of IDP data has almost certainly led to a growth in global IDP figures, and may have offset any decrease due to the overall drop in the number of conflicts. It has also been suggested that IDP figures may have been boosted by returning refugees ending up in situations of internal displacement⁹. There have indeed been many cases where refugees de facto became IDPs because they were unable to reintegrate, for example in Afghanistan. But these returnees have – to the knowledge of the IDMC – rarely been included in IDP statistics.

Another important factor explaining the continuously high number of IDPs is the changing nature of conflicts¹⁰. Increasingly, conflicts take the shape of low-intensity civil wars, fought by relatively small, ill-trained, and lightly-armed groups. While less deadly in terms of battle-related casualties than the conventional wars of the past, this new type of civil war is more likely to draw civilians into conflicts. In addition to suffering from the indirect costs of war such as rising levels of disease and malnutrition (*see thematic overview on nutrition and health below*), civilians are often directly targeted by warring parties. In many cases, including in

Colombia, Somalia, and Sudan, armed groups fighting these “new” wars deliberately chase people off their land to gain direct control over natural resources. They terrorise and intimidate populations suspected of supporting the enemy, extort money and food, and forcibly recruit children and adults as fighters and slave workers. Even where such abuses are not intended to uproot those targeted, they have led to massive displacement, with the affected populations seeking refuge in camps or with host communities in safer parts of the country. Half of the internal displacement crises monitored by the IDMC were caused by civil war.

As asylum practices have been tightened significantly after the end of the Cold War and again in the wake of the September 2001 attacks, it has become increasingly difficult for the victims of conflict to leave their country in search of international protection. Many would not be able to cross the border of their country even if they were allowed to. Without financial resources and the necessary contacts, or prevented from travelling by insecurity or natural barriers, millions are stuck in the proximity of fighting or exposed to assaults by armed groups. Others have consciously chosen, for a variety of reasons, to stay near their homes despite the risks this involves, and have developed a wealth of coping

strategies allowing them to survive in such extremely hostile environments¹¹.

Causes of displacement

While all internal displacement crises covered in this report are caused by conflict in a broader sense, a closer look at the specificities of each situation reveals a number of differences and makes it possible to identify certain trends with regard to developments in 2005.

Internal conflict is by far the most important factor generating displacement. Only seven of the 63 IDP situations monitored are exclusively the result of cross-border conflicts, although some form of foreign intervention has played a role in some 15 other crises as well. The war in the DRC, for example, was fought not only by various internal actors, but also directly involved, at one time or another, nine other countries in the region. Looking at the nearly 30 conflict situations generating displacement in 2005, international factors were even less important. Only Iraq and the Palestinian Territories were affected by foreign interventions – in the form of US-led and Israeli occupation forces, respectively – forcing significant numbers of people to flee their homes.

Civil war is the most important form of internal conflict causing conflict-related displacement. Roughly half of all IDP situations – and many of the worst – were generated by civil wars. But other forms of internal strife play an important role, too. Attempts by governments to increase control over certain sections of the population through various forms of repression and human rights violations were a factor in about a third of all IDP situations and in nearly half of the crises where people were newly displaced in 2005. The Zimbabwean government's "clean-up" operation targeting urban populations was the most striking example of this type of displacement in 2005.

Inter-communal violence, mostly between different ethnic or religious groups, was an important element in causing almost one-third of all displacement situations. In 2005, inter-communal violence led to new displacement in at least eight IDP situations, including in Côte d'Ivoire, north-eastern India, Kenya, Somalia and eastern Uganda.

Agents of displacement

National governments – responsible under international law for protecting the civilian population on their territories – were the main agents of displacement in 2005. In over two-thirds of all conflict situations

Governments as agents of displacement

Countries where governments or occupation forces were directly or indirectly involved in deliberately displacing people in 2005

Burma (Myanmar)
Central African Republic
Colombia
Côte d'Ivoire
Indonesia (West Papua)
Iraq
Mexico
Nepal
Pakistan
Palestinian Territories
Philippines
Russian Federation
Sudan (Darfur)
Togo
Turkmenistan
Zimbabwe

generating displacement in 2005, national armies or other security forces as well as paramilitaries or militias with links to the government were responsible for deliberately forcing people out of their homes. Some of the worst cases of new displacement during the year happened at the hands of government agents or government-backed armed groups, including the displacement crises in Sudan (Darfur), Burma, Côte d'Ivoire, Colombia, Nepal and Zimbabwe. Altogether at least 16 governments or occupation forces were involved, directly or indirectly, in deliberately displacing people in 2005.

New displacement

Countries worst affected by new displacement (2005)

Zimbabwe
DRC
Colombia
Iraq
Sudan

IDP return

Countries with the highest numbers of returning IDPs (2005)

DRC
Sudan
Liberia
Iraq

Rebel groups and other non-state actors have also been responsible for attacks on civilians leading to their displacement during 2005 (see *thematic overview on non-state actors and IDPs below*). This was the case in 11 IDP crises, or some 40 per cent of conflicts generating displacement in 2005, including in Colombia, Burundi, the DRC, north-eastern India, Nepal and Uganda.

Impact of the “war on terror”

As in previous years, the international “war on terror” affected the internal displacement situations in a number of countries during 2005. In Iraq, some 200,000 people were displaced, at least temporarily, during US-led military operations targeting insurgents and militants often referred to as “terrorists”. Along Pakistan’s border with Afghanistan, thousands of people had to flee their homes temporarily due to military raids on villages and towns suspected of sheltering Taleban fighters. In the Occupied Palestinian Territories, hundreds of people – although fewer than in the previous year – were displaced as a result of measures intended to protect Israel from terrorist attacks, including the

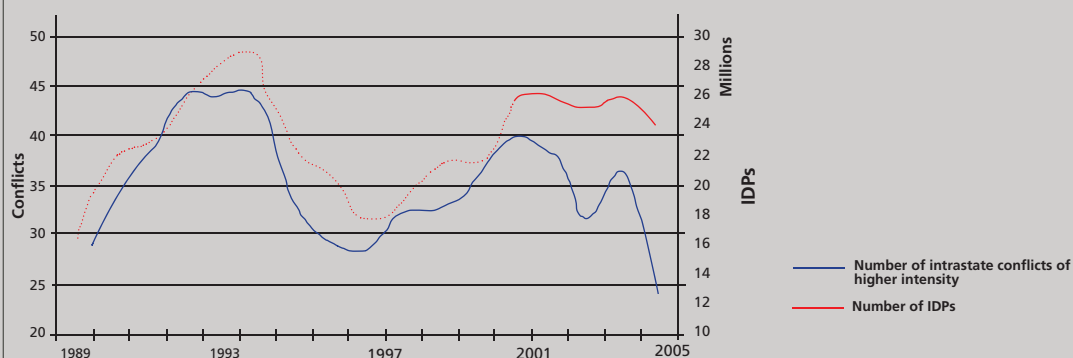
construction of the separation barrier and the demolition of houses by Israeli security forces.

In other countries, including Colombia, Nepal, the Philippines, Uganda and the Russian Federation, the “war on terror” continued to be used by governments to justify, and sometimes intensify, ongoing anti-insurgent operations, as well as to garner international support or avert criticism. This generally contributed to a narrow focus on military solutions, to the detriment of attempts to end conflicts by political means. Moreover, the re-labelling of existing rebel groups as “terrorists” was used by governments, most explicitly by the government of Colombia, to deny the applicability of international humanitarian law to their internal conflicts, thereby undermining a key component of the legal basis for the protection of IDPs and other civilians.

The most vulnerable

The IDMC estimates that more than half of the world’s IDPs, some 14 million people in over 20 countries, were at high risk of falling victim to physical violence threatening their lives in 2005. This estimate remained almost unchanged compared to the previous year although the total number of IDPs slightly decreased during the year. It reflects the continuing lack of security in many countries affected by internal displacement, where governments cannot guarantee the physical security of their citizens or, worse, are responsible for attacks on IDPs and other civilians themselves. Burma, Colombia, the DRC, Iraq, Somalia, Sudan (Darfur), and northern Uganda belong to the most dangerous places for displaced populations. Women and children often are particularly vulnerable to sexual or other forms of vio-

CHART 4: IDPS AND INTRASTATE CONFLICTS



Sources: Global IDP Project; Heidelberg Institute on International Conflict Research, Conflict Barometer 2005

A Nepalese girl in the Kirin Khola IDP camp inhabited by families who fled Maoist controlled areas.
(Photo: Tomas van Houtryve)



lence (see *thematic overviews on women and children below*). As lack of security also affects humanitarian access, many of those stuck in dangerous situations also have limited possibilities of getting humanitarian assistance, which – in addition to immediate physical threats – makes them more vulnerable to malnutrition and diseases.

At the other end of the spectrum, there are a number of internal displacement situations where IDPs generally do not have acute protection or humanitarian needs. This is the case in some of the European and Middle Eastern countries affected by internal displacement. However, even though compared to IDPs in humanitarian emergencies they do not face any immediate dangers to their lives, this does not mean that they would not need further attention and specific assistance from their governments and, where necessary, the international community. In many post-conflict situations, IDPs end up as second-class citizens, facing discrimination, difficulties in repossessing their properties and restrictions on exercising their political and economic rights (see *thematic overviews on post-conflict situations, political participation, and housing, land and property issues below*).

Inadequate national humanitarian and protection responses

By and large, national responses to the challenge of internal displacement remained strikingly inadequate during 2005. National authorities are responsible

No government assistance

Countries where IDPs received no or very limited humanitarian assistance from national authorities

Bangladesh
Burma
Central African Republic
Congo-Brazzaville
DRC
Guinea
Mexico
Somalia
Sudan (Darfur)
Turkmenistan
Zimbabwe

under international law for protecting the civilian population within their jurisdiction and providing them with humanitarian assistance if needed. This was reconfirmed by the heads of state and government at the 2005 UN World Summit when they recognised the Guiding Principles on Internal Displacement as an “important international framework” and “resolve[d] to take effective measures to increase the protection of internally displaced persons”¹². This commitment notwithstanding, most governments faced with situations of internal displacement continued to fail to

No government protection

Countries where authorities reacted with hostility or indifference to IDP protection needs

Burma (Myanmar)
Burundi
Central African Republic
Congo-Brazzaville
Côte d’Ivoire
DRC
Ethiopia (Gambella)
Guatemala
Mexico
Sudan
Turkmenistan
Zimbabwe

A Colombian soldier checks the bag of a woman during combats between the Colombian army and FARC rebels in Toribio, Cauca province. The conflict has caused the largest IDP crisis outside Africa. (Photo: Reuters/Eduardo Munoz, courtesy www.alertnet.org)



live up to their responsibilities vis-à-vis IDPs in 2005, or were even behind forced displacements themselves.

In 80 per cent of the displacement situations where IDPs' lives were in danger as a direct result of ongoing conflict, governments provided only partial protection, or none at all. At least 13 governments responded with indifference or outright hostility to the protection needs of IDPs in 2005, putting the lives of an estimated six million IDPs at risk. These included the governments of Burma, Côte d'Ivoire, Ethiopia (in Gambella) and Sudan.

Governments appear to be similarly unwilling to make genuine efforts to provide humanitarian assistance to displaced populations. IDPs received insufficient humanitarian aid, or nothing at all, from their governments in three-quarters of IDP situations where humanitarian needs existed. This affected nearly six million IDPs.

In a quarter of IDP situations, governments not only failed to adequately assist their citizens, but also restricted access by international humanitarian organisations to affected populations. The governments with the worst record in helping their citizens with humanitarian assistance to a large extent overlapped with those failing to provide protection.

The high number of governments not adequately ensuring the safety and well-being of their displaced citizens reflects the fact that, as shown above, many governments were responsible for displacements themselves and thus had little interest in acknowledging the existence of an IDP crisis, let alone providing help.

Others were not able to provide adequate assistance or protection, either because of lack of financial resources and weak state structures or because they had lost control of parts of the country. A number of countries affected by internal displacement are "failed states" virtually unable to provide meaningful services to many of their citizens. All of the ten highest ranking countries on the 2005 Failed States Index have been affected by internal displacement in recent years¹³.

However, in a large number of countries, in particular those with comparably strong state structures such as India, the Russian Federation, Uganda or Zimbabwe, improving the situation of IDPs was hampered by a lack of political will of the respective governments to address the problem and allocate resources accordingly.

In several countries, non-governmental organisations play an increasingly important role in filling the gaps left by governments, at both national and grassroots levels, but generally face severe resource limitations (see *thematic overview on civil society involvement in IDP situations below*). In countries such as Colombia, Georgia, the Philippines, the Russian Federation and Serbia and Montenegro, civil society organisations have become important advocates for the rights of IDPs.

National IDP frameworks

The legislative, policy and institutional frameworks determining national responses to internal displacement crises vary significantly among the countries affected. There is a growing number of states which have developed specific IDP legislation, or are in the process of doing so, including Colombia, Peru and the Philippines. In some cases, states have incorporated the Guiding Principles on Internal Displacement, the set of international standards on IDP issues, into their domestic legislation. In other cases, international peace agreements have provided the legal framework for addressing IDP situations, for example in Bosnia and Herzegovina and Macedonia. The UN Secretary-General's Representative on the Human Rights of IDPs in 2005 began drafting a manual aimed at assisting lawmakers with translating the Guiding Principles into national legislation.

Five largest IDP situations

Sudan (5.4 million IDPs)
Colombia (up to 3.7 million)
Uganda (2 million)
DRC (1.7 million)
Iraq (1.3 million)

A growing number of governments, including Nigeria, Turkey and Uganda, have also adopted, or are in the process of completing, national IDP policies and strategies – important instruments for determining government involvement and assigning institutional responsibilities.

Altogether, however, only a little more than a third of the countries affected by internal displacement had adopted specific legislation or policies as frameworks for their IDP responses by 2005, and only eight of them can be considered to be making a genuine effort to implement them.

The adequacy of the institutional framework with regard to dealing with situations of internal displacement is another key indicator of government commitment to respond to IDP crises. Clear institutional responsibilities and the allocation of sufficient funds to the institution in charge are important elements of an effective response. However, in all but ten countries there was no clear institutional focal point coordinating the government's IDP response in 2005, or existing designated structures did not have the authority or resources to be able to play their role effectively.

Weak international response

Internationally, there continued to be little awareness of the phenomenon of internal displacement among the general public. This was largely due to the failure of most international media to adequately cover protracted and complex conflicts and their impact on the civilian population. Although the humanitarian crises in Darfur and – to a limited extent – northern Uganda received some media attention during the year, most of the situations of internal displacement remained ignored by the mainstream national and international media. All eight countries or regions on Alertnet's list of the ten most forgotten emergencies are affected by internal displacement¹⁴.

At the political level, international pressure was instrumental in ending the civil war between the

Sudanese government and southern-based rebels in January 2005. The deal paved the way for the return of the world's largest internally displaced population. Similarly, the peace agreement concluded under international mediation between the Indonesian government and Acehese rebels in August 2005 was expected to enable IDPs displaced by the conflict to go back to their homes. The UN-run return process in Liberia, although heavily criticised by some NGOs for being badly organised, continued during the year and led to the return of the majority of IDPs.

Little progress was made, however, on ending some of the other conflicts that continued to cause death and displacement in 2005. In Sudan's Darfur region the international community has stepped up significantly its humanitarian presence and deployed an observer mission – grossly understaffed and ill-equipped – under the umbrella of the African Union. But killings, human rights abuses and displacement continued throughout the year, and efforts remained limited towards increasing the strength of the observer mission and putting pressure on the parties involved to seek a political solution to the conflict which has caused the displacement of some two million people.

Nor has the conflict in northern Uganda – which has displaced 90 per cent of the population and created a humanitarian crisis killing nearly 1,000 people per week more than under non-crises circumstances¹⁵ – prompted an adequate international response. There

The world's 10 worst IDP situations

Burma (Myanmar)
Sudan
DRC
Zimbabwe
Côte d'Ivoire
Colombia
Iraq
Somalia
Uganda
Nepal

(Based on a combination of factors such as size of IDP population, scope of protection concerns, government response, and humanitarian access)



Displaced people on a small market in an IDP camp in Burundi. (Photo: Greta Zeender/IDMC)

has hardly been any international support for ongoing peace initiatives, and the UN presence in the country has been unable to ease the humanitarian crisis in the IDP camps in the north. The UN Security Council visited Uganda in November 2005 but continued its silence on the conflict and its effects on the civilian population during the mission.

In the DRC, the failure of the international community to field a peace-keeping force adequate for the size of the country contributed to allowing militias to continue to wreak havoc in the country's eastern provinces. At the end of 2005, there were some 17,000 peace-keepers in the DRC, roughly the same number as in Liberia which is 20 times smaller.

At the operational level, the international response remained riddled with problems. The "Collaborative Response", the inter-agency cooperation system developed to make up for the lack of a single dedicated organisation responsible for IDPs, was not implemented in most countries, although agencies had re-committed themselves to this approach by adopting a revised inter-agency IDP policy in September 2004. The Collaborative Response requires UN agencies to work together at the country level under the overall leadership of the UN's Resident Coordinator or – where there is one – Humanitarian Coordinator in order to address the needs of IDPs in a comprehensive and timely man-

ner in line with each agency's mandate and expertise¹⁶. However, lack of leadership and accountability, the reluctance of UN agencies to divert resources from their core mandates, and the failure of donor governments to provide coherent political and sufficient financial backing vis-à-vis UN agencies and host governments in effect rendered the system largely ineffective¹⁷.

Tangible, albeit still limited, progress towards putting the Collaborative Response into practice was made in fewer than ten countries during 2005, among them some of the priority countries of the UN's Internal Displacement Division such as Somalia and Uganda. The inter-agency Internal Displacement Division, which supports the UN Emergency Relief Coordinator in his function as the Secretary-General's main focal point for IDP issues, played an important role in assisting Humanitarian Coordinators and UN agencies to improve their responses to internal displacement at the country level.

Overall, however, the international operational response to situations of internal displacement continued to be weak, or non-existent. Indeed, the UN was not involved in providing assistance or protection to IDPs in more than a third of countries where IDPs were faced with humanitarian or protection problems (16 out of 46 countries). This means that close to 3 million

IDPs in effect did not have access to UN assistance or protection. In another 11 countries, with over 4 million IDPs, the displaced may have benefited from UN assistance but were not targeted as a specific group, despite the particular needs displaced populations generally have. Altogether, over 7 million IDPs, almost a third of the world's internally displaced people, were not identified as a specific target group, or did not receive any UN assistance at all.

A number of other shortcomings in the international response were observed in 2005 as well. Country Teams – the ensemble of UN and other agencies represented in a country – in most cases failed to develop an IDP strategy clearly defining the scope of their IDP-related activities and assigning responsibilities. Only 13 Country Teams had adopted such a strategy, and of those only nine made a genuine effort to actually implement it. Slightly more Country Teams had set up working groups to coordinate IDP-related activities – an essential tool for ensuring an effective response. Still, in the majority of countries no such coordination forum existed, or it did not meet on a regular basis.

There are a number of reasons for the failure of the international community to mount a more effective response to IDP crises and fill the gaps left by the inaction of national governments¹⁸. Invoking the principles of state sovereignty and non-interference in internal affairs, national governments tried to limit or even block international involvement in nearly half of the

No UN involvement

Countries where the UN was not involved in providing humanitarian assistance or protection to IDPs in 2005

Algeria
Burma (Myanmar)
Central African Republic
Guatemala
Guinea
India
Kenya
Mexico
Pakistan
Peru
Rwanda
Senegal
Togo
Turkmenistan
Uzbekistan

Note on reliability of IDP data

Although the availability of IDP data has improved over the past years, there remain enormous information gaps. For most countries, not even the scope of the displacement crisis is known with any level of accuracy, let alone more specific information on the IDPs' living conditions and needs. IDP figures used by governments and international organisations are often rough estimates, and at times contradict each other.

The global IDP number presented in this report and the figures illustrating some of its findings are therefore based not only on the "official" estimates published in the Annex, but also on analysis of additional information on recent developments with regard to new displacement, returns and reintegration in the affected countries.

countries affected by internal displacement, in particular where politically sensitive human rights issues were at stake. In many such situations, such as in Algeria, India, Turkey, Turkmenistan or Uzbekistan, the UN remained silent on IDP issues, even in cases of serious human rights violations, for fear of endangering relations with the authorities and the continuation of existing programmes. UN country offices often focus on development issues and find it hard to acknowledge and address the more sensitive humanitarian and human rights challenges connected to most IDP situations. Faced with the ongoing crises in northern Uganda and Nepal, for example, the UN was still struggling with switching from a development to a humanitarian/human rights mode in 2005. These difficulties are also frequently linked to a lack of necessary skills and capacity among UN country offices to address IDP issues in an adequate manner.

Donor governments were responsible for the weak international response as well, in particular by failing to use their influence to put political pressure on recipient governments to tackle root causes of conflict and allow more international assistance, and on UN agencies to address IDP situations in a more timely, systematic and comprehensive manner.



Internally displaced Sudanese women in an IDP settlement in Garsila, Darfur. (Photo: Petterik Wiggers)

Positive change through humanitarian reform?

The weakness of the international response to internal displacement has been widely acknowledged. In his 2005 report on UN reform, Secretary-General Kofi Annan expressed his intention “to strengthen further the inter-agency response to the needs of internally displaced persons”¹⁹.

A number of steps were taken in 2005, as part of the broader UN reform process, to improve the existing humanitarian response system. By the end of the year, agreement was reached on a number of new arrangements which – if implemented – could amount to a major reform of the system with potentially positive implications for the international response to internal displacement situations. Central elements of the reform are the creation of an emergency response fund, the assignment of lead agencies for neglected humanitarian sectors or “clusters”, and the creation of a stand-by team of protection experts.

While all these initiatives have the potential to bring concrete benefit to displaced populations, the new

“cluster” approach may lead to the most fundamental change of the current response system. By clearly assigning responsibility to individual agencies for ensuring a timely and comprehensive response in sectors where major gaps have been identified, the new approach could lead to more accountability and predictability. Three of the sectors primarily focus on IDPs, namely the protection, shelter and camp management clusters. And the three countries selected to pilot the new approach in 2006 – the DRC, Liberia and Uganda – all have large IDP populations. The UN refugee agency UNHCR agreed to take over the lead role for the three clusters most relevant for IDP situations. This in effect means that UNHCR, which so far has dealt with IDP situations only in a limited number of countries based on certain narrowly-defined criteria, for the first time committed itself to assuming global responsibility for key areas of IDP protection and assistance.

Preparations for the implementation of the cluster approach in the three pilot countries were ongoing

International response taking shape

late 1980s	Internal displacement emerges as an issue on the international agenda
1992	UN Secretary-General appoints Francis Deng as his Representative on Internally Displaced Persons
1997	UN Secretary-General appoints Emergency Relief Coordinator as focal point for IDPs in the UN system
1998	Publication of the Guiding Principles on Internal Displacement
1999	Global IDP Project launches IDP database at the request of the UN
2000	-Inter-Agency Standing Committee adopts IDP policy -Emergency Relief Coordinator establishes Senior Inter-Agency Network on Internal Displacement
2001	Global number of IDPs reaches 25 million and remains largely unchanged for the following years
2002	Internal Displacement Unit (since 2004: Division) established within UN Office for the Coordination of Humanitarian Affairs (OCHA)
2004	-UN Secretary-General appoints Walter Kälin as Representative on the Human Rights of Internally Displaced Persons -Inter-Agency Standing Committee adopts revised IDP Policy Package to strengthen the "Collaborative Response"
2005	Introduction of "cluster" approach; UNHCR takes on lead responsibility for protection, emergency shelter and camp management clusters

at the time of writing. It was thus too early to assess the effectiveness of the new approach and its impact on situations of internal displacement. At the same time, lack of support from donor governments and lack of involvement and participation by parts of the NGO community threatened to deal a serious blow to the reform efforts even before real implementation started.

As this report clearly shows, huge gaps in national and international response systems in effect leave millions of IDPs without adequate protection and humanitarian assistance. Stepping up efforts to better protect IDPs against violence and human rights abuses and provide them with sufficient food, shelter and health care so that they can survive and rebuild their lives must therefore remain an urgent priority. However, humanitarian assistance cannot be a substitute for genuine political efforts – at both the national and international levels – to end the conflicts leading to displacement and address their root causes. Ulti-

mately, only sustained and concerted investments in conflict prevention, peace building and post-conflict recovery in affected countries will lead to a tangible reduction of the scope of the worldwide internal displacement crisis.

Thematic Overviews 4



Father and son in Awere IDP camp in northern Uganda. (Photo: Chris de Bode)

Nutrition and Health

In many conflict and post-conflict situations, internally displaced people appear to be more vulnerable to malnutrition and diseases than the non-displaced population.

Nutrition and health are the most important indicators for assessing the well-being of a population as well as measuring the effects of war or natural disasters. Along with shelter and clothing, they also constitute the core subsistence rights of IDPs (see Guiding Principle 18.2). The particular vulnerability of IDPs due to ethnic discrimination and conflict is widely acknowledged, although only very few surveys assess their particular nutritional and health needs. Nevertheless, it is estimated that up to one-third of the internally displaced do not have regular access to clean drinking water and adequate sanitation facilities. Another important factor influencing the nutritional and health status of IDPs is insecurity due to fighting or landmines, which may obstruct the delivery of food and medicines.

While a large majority of IDPs worldwide do suffer from a similar or higher level of malnutrition and disease than non-displaced populations, there may be situations in which IDPs are better off, for example when specifically assisted by international humanitarian organisations.

Nutrition and IDPs

Having lost their livelihoods, many internally displaced find themselves in precarious conditions, deprived of access to food and means of production, like arable land. Where people are caught in areas of conflict or where they had to flee to remote parts of the country, the support they receive from their government or the international community is often inadequate. With little or no possibilities to re-build their livelihoods, many suffer from malnutrition, often more so than the non-displaced populations who, despite suffering similar hardships, are often able to retain resources and coping strategies and who can continue to count on their traditional support mechanisms.

Nutrition surveys

For most countries, very little information is available on the nutritional status of IDPs, either because there are no surveys or because the displaced were not addressed separately from the general sample population. Countries with IDP-specific nutritional information include Burma, Colombia, Ethiopia, Liberia, Somalia, Sudan, Uganda and to some extent Angola and Nepal. All of these countries were undergoing serious crises, marked by a combination of armed conflict, displacement and/or natural disaster. Accordingly, malnutrition rates among IDPs were extremely high, with some above the critical 15 per cent threshold set by the World Health Organisation to define emergency situations.

UN agencies warned at the end of 2005 of an impending drought in the wider horn of Africa which could affect up to 12 million people and lead to large-scale displacement or aggravate existing IDP situations. Somalia risks being particularly affected, along with Kenya and Ethiopia²⁰.

The right to food and water

International human rights and humanitarian law prohibits the starvation of civilians as a means of combat and the destruction of foodstuff and water sources²¹. Nevertheless, in several countries, the nutritional basis of internally displaced and other population groups experiencing food insecurity has been jeopardised by conflict-related developments (Burma, DRC, Colombia, Côte d'Ivoire, Nepal, Sudan, Uganda), the lack of government action (Colombia), government repression (Zimbabwe) or situations of lawlessness (Somalia).

In other situations, it is difficult to ensure that food reaches displaced populations because they live in remote areas (e.g. Angola, DRC, Central African Republic), or levels of insecurity may be such that humanitarian assistance is blocked (e.g. DRC, Ethiopia, Somalia, Uganda). In Iraq, military operations have repeatedly prevented access and delivery of humanitarian assistance.

Children collecting water in the Bilel IDP camp in Darfur, Sudan. (Photo: David Rose)



Although access to clean water is recognised as a human right²², in at least one-third of the countries affected by internal displacement, the majority of the displaced lack access to clean drinking water. In combination with the absence of adequate sanitation facilities, this has a negative impact on their health status (see under Water and Sanitation).

Improved access to arable land during displacement would greatly enhance IDPs' access to food and reduce their dependence on humanitarian aid. While specific efforts are made in Uganda and northern Somalia to provide IDPs with land, in many countries, fertile land cannot be accessed due to conflict-related insecurity (Côte d'Ivoire, Burma, India, Bangladesh).

Health and IDPs

IDPs, especially when living in settlements and camps, are exposed to a number of preventable diseases. The most prevalent are diarrhoea, acute respiratory infections, tuberculosis and malaria, but they also suffer from cholera, measles and meningitis. There were in addition outbreaks of polio and yellow fever in a number of African countries in 2005. The little information that is publicly available on the health status of IDPs is mostly based on anecdotal evidence, as not many health surveys specifically focus on IDPs. Existing data suggest extremely high mortality rates²³ among IDPs in Ethiopia, many parts of Somalia and northern Uganda.

Water and sanitation

Clean water and appropriate sanitation are fundamental for a healthy environment. Where IDPs live in temporary settlements or camps, the water and sanitation

conditions are often not satisfactory which exposes them to greater risks of contracting water-borne diseases. In many countries, IDPs' access to clean water and sanitation is inferior to that of the general population. These countries include Angola, Burma, Colombia, Ethiopia, Iraq, Liberia, Mexico, Nepal, Peru, the Philippines, Somalia, Sudan and Uganda, where the majority of IDPs do not have sufficient access to clean water or appropriate sanitation. Such precarious conditions become particularly visible in camp situations. According to one study, the alarmingly high mortality rate among IDPs in northern Ugandan IDP camps can be partially linked to the overcrowded and unsanitary conditions²⁴. IDPs living in camps in the DRC experience similar living conditions.

While IDPs in Europe generally have satisfactory access to water, sanitation and health care, Roma IDPs usually live in informal settlements with very poor sanitary conditions.

Access to health care

In over half of the countries affected by internal displacement, including practically all African and most Asian countries, the majority of IDPs and the population at large have no access to adequate health care, mainly because of the breakdown of health services in war-affected areas, in some circumstances due to lack of financial resources, or the IDPs' remote location. In several countries, including Burma and Serbia and Montenegro (Kosovo), IDPs faced discrimination with regard to access to health, often because of their ethnic origin, or restrictions on their freedom of movement. In the Palestinian Territories, limited freedom of movement also has a negative impact on IDPs' ability to use health facilities. Many European Roma

have limited access to health care because they lack personal documents. In some situations, however, IDPs enjoy better health care in camps than in their places of origin. This is the case for example in Burundi and Afghanistan.

Mental health of IDPs

Many IDPs suffer from post-traumatic stress disorder due to their forced displacement and the difficulties faced during displacement and reintegration²⁵. In countries like Colombia and Sudan (Darfur), IDPs experience extreme levels of humiliation. Only in very few countries are there surveys on, or facilities for, the mental well-being of IDPs. One organisation in the Philippines, Balay, focuses specifically on the psycho-social health of IDPs²⁶, and in Sri Lanka there are some mechanisms in place to assist IDPs with mental problems. In Nepal, NGOs provide psycho-social support to IDP children. The Norwegian Refugee Council provides psycho-social support in Colombia, and published a handbook on psycho-social rehabilitation of refugee and IDP children in 2001, based on experiences in Azerbaijan. In all eastern European countries affected by internal displacement, psycho-social support is provided by NGOs, but an overall approach is lacking. In many countries (for example Somalia, Liberia, DRC), local or international organisations provide some psycho-social support for IDPs, but it often remains limited and uncoordinated.

In June 2005, the Inter-Agency Standing Committee (IASC) Working Group established a Task Force on Mental Health and Psycho-social Support in Emergency Settings. The goal of the task force is to integrate mental health issues into all aspects of IASC work and to develop guidelines on mental health for organisations working in the field.

HIV/AIDS and IDPs

HIV/AIDS has disruptive effects on any community²⁷. Malnutrition and mortality rates are typically higher among populations with a high prevalence of HIV/AIDS. The disease undermines the coping capacity of communities, including by reducing the number of adults able to contribute to household incomes or work in the fields, thereby increasing food insecurity. In addition, people living with HIV/AIDS often suffer from discrimination, which further restricts their ability to work.

Although very few studies on HIV/AIDS refer specifically to IDPs (for example Ethiopia and Sudan), the general assumption is that IDPs are at greater risk of contracting the virus than other populations, due to their instable living conditions and vulnerabilities. They tend to be mentioned along with refugees and migrant workers. However, research findings suggest that existing data does not support the general perception that IDPs have consistently higher HIV infection rates than the general population²⁸, nor that conflict necessarily increases the risks of HIV/AIDS infections²⁹.

Post-conflict recovery

Even in situations where conflicts have ended, the nutrition and health status of IDPs sometimes remains at emergency level for a long time, mainly due to poor access to water and sanitation, as well as to appropriate preventative and curative health services³⁰. In post-conflict situations, the degree to which IDPs' nutritional and health conditions can improve is dependent on their capacity to cope with and recover from trauma and the loss of assets, but also on the political will and effective investment of the state and international donors to sustain recovery and compensation programmes, towards more equitable development in previously marginalised areas.

Relevant sections of the Guiding Principles on Internal Displacement

The Guiding Principles specifically recognise the right of all internally displaced persons "to an adequate standard of living" (principle 18.1). This means that "at the minimum, regardless of the circumstances, and without discrimination, competent authorities shall provide internally displaced persons with and ensure safe access to essential food and potable water, basic shelter and housing, appropriate clothing and essential medical services and sanitation" (principle 18.2).

The Guiding Principles further recognise the right, without distinction other than on medical grounds, to access to medical care, including, when necessary to psychological and social services (principle 19.1). "Special attention should be paid to the health needs of women [...] and to the prevention of contagious and infectious diseases, including AIDS, among internally displaced persons" (principles 19.2 and 19.3).



Sudanese women waiting for counselling outside a tent at Abushouk camp near El Fasher, Darfur. (Photo: Finbarr O'Reilly)

Internally Displaced Women

The Guiding Principles on Internal Displacement explicitly provide for protection for women. Provisions in favour of displaced women are guided by two core issues: first, to safeguard them from gender-specific violence, and second, to uphold their rights to equal access to services and participation in assistance programmes³¹. The gap between these standards and reality remained abysmal in 2005 for most displaced women and girls.

There is a lack of reliable statistics on gender-based violence in countries undergoing internal displacement. Violations are generally not reported during conflicts, and many post-conflict epidemiological surveys do not include questions on sexual violence because they are too sensitive³². The work of organisations collecting information on abuses has also been hindered. In May 2005 for example, two Médecins sans Frontières (MSF) employees were arrested in Sudan, following the publication of a report documenting some 500 cases of rapes in Darfur. They were charged with capital crimes before being released due to international pressure.

However, widespread sexual abuse of displaced and other women was still documented in at least a third of the countries undergoing internal displacement in 2005, the majority of them in sub-Saharan Africa. Victims of violations have often contracted HIV/AIDS and other sexually transmitted diseases.

Displaced women in countries like Burundi, the DRC, Liberia, Uganda, Somalia and Sudan were more at risk of becoming victims of gender-based violence than other women in 2005. In Uganda and in Sudan, displaced women who worked in the fields, or collected water and firewood outside the camps, repeatedly fell prey to sexual abuse. In Burundi, displaced widows reportedly often had no choice but to resort to multiple sexual relations and polygamy in order to support themselves and their children. In the DRC, despite the relative improvement of the security situation throughout the country, MSF reported in March 2005 that each week, 40 raped girls and women sought its help in Bunia, the capital of the war-torn Ituri district, but that many more never reached the humanitarian organisation³³.

In several other countries, such as Côte d'Ivoire, Iraq and Zimbabwe, there is no indication that incidence of sexual violence among displaced women was higher than among other women in 2005. Many reports point out, however, that conflicts have had a negative impact on women's security in general. In Iraq for example, fear of harassment, abduction and rape has prevented displaced and other women from moving freely, and has therefore restricted their access to education, work and health services.

Displaced women in Darfur: risking their lives every day

In Darfur, many women and girls experienced gender-based violence when their homes were attacked, and then again once they reached IDP camps. Like other women, displaced women are responsible for collecting firewood and providing fuel for their families. The risk of sexual assault has increased as displaced women have had to venture further and further from the camps, since the surrounding vegetation was increasingly depleted. Despite the security risk it represents, firewood collection has been the only livelihood strategy available to them, to supplement the rations handed out by humanitarian organisations.

Source: UNIFEM, September 2005, Fuel Provision and Gender-Based Violence: Fuel-efficiency as a prevention strategy, by Stephanie Ziebell

Sexual violence against displaced and other women was perpetrated in 2005 by regular armed forces, armed non-state actors, criminals and private citizens. Abuses have generally been perpetrated with total impunity. In Liberia, an encouraging step toward bringing those responsible to justice was the adoption by the transitional parliament in December 2005 of a law making rape a felony of the first degree, punishable by life imprisonment. In Sudan, the government in 2005 established a state committee on combating gender-based violence in southern Darfur and offered training to law enforcement agencies to better investigate cases of violations occurring in the region. In eastern DRC, Darfur and northern Uganda, the rape of displaced and other women is among the war crimes allegations investigated by the International Criminal Court. It remains to be seen whether these various measures will have any impact on the life of displaced and other women.

Over the past few years, international peacekeepers have repeatedly committed sexual abuses against displaced women, particularly in Burundi, the DRC, Liberia and Côte d'Ivoire. In 2005, the UN Office of Internal Oversight Services reported that it had found a pattern of sexual exploitation by peacekeeping personnel in the DRC, and requested the concerned troop-contributing countries to take swift disciplinary action. Acknowledging the extent of the problem, UN Secretary-General Kofi Annan announced in November 2005 a forthcoming proposal for a comprehensive, system-wide strategy for providing assistance to victims of sexual exploitation and abuse by UN staff and related personnel³⁴.

Despite their pressing needs, displaced women were in general unable to access reproductive health services³⁵ in at least a third of the countries undergoing internal displacement in 2005. Some women displaced in camps, such as in Burundi and Liberia, however, had access to basic health services. The main reasons for the difficulty in accessing these services were prohibitive fees, lack of healthcare infrastructure and insecurity. As a result, many displaced women have been relying on traditional health workers. Many victims of sexual abuse have also not sought treatment in clinics due to stigma and shame.

In societies undergoing internal displacement, the empowerment of women is particularly challenging, as women often work in dangerous environments and with very limited resources. Still, women's organisations of every continent carried out initiatives to promote the rights of displaced and other women in 2005. In Iraq, numerous associations working for women's rights have been formed since 2004, including groups that focus on the protection of women from violence. In the Philippines, the Mindanao Commission on Women, an NGO made up of Christian and Muslim women leaders from the conflict-affected Mindanao Island, have attracted considerable attention to the plight of their region. Women's organisations in eastern DRC offer psychological and material support to displaced and other women victims of sexual abuses. In Colombia, hundreds of organisations, including women's groups, work with and for IDPs, although the majority of them have very little resources. The Bosnian Women's Initiative has been developing projects involving displaced, returnees and other women to foster integration and reconciliation. At the regional level, the Mano River Women's Peace Network promotes the involvement of women of Liberia, Sierra Leone and Guinea in conflict prevention and resolution, and draws the attention of national leaders to the issue of violence against women and girls.

Over the last few years, humanitarian organisations have paid increased attention to the specific needs of displaced women. One of the latest significant initiatives was the publication in September 2005 of the "Guidelines for Gender-based Violence Interventions in Humanitarian Emergencies" by the Inter-Agency Standing Committee, a body comprised of UN humanitarian agencies and NGOs. The Guidelines aim to provide practical advice on how to ensure that humanitarian programmes for displaced populations are safe and do not directly or indirectly increase women's and girls' risk of sexual violence. They also detail what response services should be in place to meet the needs of survivors/victims of sexual violence³⁶.

Children in an improvised dormitory for “night commuters” in Gulu, northern Uganda. (Photo: Reuters/Radu Sigheti, courtesy www.alertnet.org)

Internally Displaced Children



The Guiding Principles on Internal Displacement underline that “children and unaccompanied minors... shall be entitled to protection and assistance required by their condition and to treatment which takes into account their special needs”³⁷. Internally displaced children are indeed particularly vulnerable, since the displacement process endangers many of the human rights guaranteed to the child in international law³⁸. Displacement frequently results in the breakdown of family and community structures, the disintegration of traditional and social norms, and an increase in female-headed households, which jeopardises the physical integrity and psycho-social well-being of displaced children, and can lead to rapes and other physical abuse, malnutrition, poverty, discrimination, other human rights violations and even death. Among the most vulnerable and forgotten internally displaced children are unaccompanied children, or children who have been separated from parents and other relatives.

Among the key developments at international level in the effort to provide better protection to all children affected by armed conflict was the formation of a new working group on the issue by the UN Security Council in November 2005. The group was set up pursuant to Security Council resolution 1612 (2005) which endorses the establishment of a systematic monitoring

and reporting system on violations against children in armed conflict.

Focus on education for internally displaced children

Education offers an important source of stability and security for children affected by conflict and displacement. Education may also protect displaced children from dangers such as military recruitment, sexual exploitation and child labour, and enables them to gain access to the necessary tools for their personal development³⁹.

Yet during the year, many displaced children were unable to access formal education or faced greater difficulties than other children in doing so. In a few situations, like Afghanistan, displaced children in IDP camps had greater access to education than average poor Afghan children. Millions of other displaced children however lacked access to education in 2005⁴⁰.

The cost of education was one of the key obstacles preventing displaced children and adolescents from attending school during 2005. According to the Guiding Principles, national authorities are responsible for ensuring free and compulsory education at the primary level. In practice, however, in many countries affected by internal displacement parents had to pay to send

Limited access to education

Countries where displaced children were unable to access education due to conflict or faced greater difficulties in accessing education than other children due to factors including security, lack of infrastructure, fees, discrimination, and language barriers

Colombia	Nepal
Sudan	Philippines
Somalia	Palestinian Territories
Burundi	Burma (Myanmar)
DRC	Central Java, Indonesia
Liberia	Iraq
Nigeria	Uganda
Bangladesh	Congo-Brazzaville
Sri Lanka	



Palestinian boys herd their animals in front of the security barrier built by Israel in the outskirts of Jerusalem. The ongoing construction of the barrier has cut off many Palestinians from their livelihoods and basic services, and caused the displacement of an unknown number of people (Photo: Reuters/Ammar Awad, courtesy www.alertnet.org)

their children to primary school, although there was some progress in a few cases in 2005. Primary education was declared free by the newly-elected government of Burundi, and by the authorities of Puntland, an autonomous territory in north-eastern Somalia⁴¹.

Yet even in countries where primary-level education is free, extra fees for registration, identification documents, uniforms and books are often unaffordable for internally displaced families. In Colombia and Nepal, where primary schools are free, surveys among displaced households indicate that many did not send their children to school because they could not afford to buy uniforms and textbooks or pay for the identification papers necessary for admission⁴². In the DRC, the education authorities have stated that they will start paying teachers an official salary, for the first time in ten years, but it is not known to what extent this has actually been implemented in areas where IDPs live. Very few opportunities existed for displaced youth to enrol in secondary and post-secondary education⁴³.

Poor security conditions also kept school attendance low among displaced children. In countries including Côte d'Ivoire, the DRC, Iraq, Liberia, the Palestinian Territories, the Philippines, Sudan and Uganda, as well as in India's north-eastern state of Assam, displaced children were unable to attend school for significant periods of time during the year due to fighting and insecurity. In

certain areas of Kosovo, non-Albanian displaced children – mainly Serbs – still had to attend school under military escort. Few schools exist outside of IDP camps in Uganda, due to the fact that schools were the deliberate targets of the Lord's Resistance Army⁴⁴. Schools were also attacked by Maoist rebels and government forces in Nepal in 2005⁴⁵. For example, local NGOs reported that between February and May 2005, Maoist rebels attacked 23 schools, bombing six rural schools in one day alone in Rukum⁴⁶. The rebels have also intimidated and displaced teachers. Displaced children also faced difficulty in accessing education due to the lack of teachers in many other countries during the year, such as Côte d'Ivoire, the DRC, Liberia, Nepal, the Philippines, Sudan, and Uganda.

The lack of infrastructure also hindered substantial numbers of displaced children from going to school. Local schools struggled to integrate influxes of displaced and returnee children in countries where education facilities had been severely damaged or overcrowded including in Côte d'Ivoire, the DRC, Guinea, Georgia, Iraq, Liberia, Nepal, Somalia, Sudan, Uganda and in remote areas of Chechnya. In southern Sudan it is estimated that fewer than 200 of the 1,600 schools have permanent buildings⁴⁷. In rebel-held areas of Côte d'Ivoire, the lack of a functioning administration and services, as well as the absence of many teachers who remain displaced in the south, has prevented

school exams from being held for the third year in a row. Schools and public buildings were also used to shelter displaced families, which disrupted education for displaced children and local children from the host community, including in the Philippines and Uganda.

Displaced girls were less likely to attend classes than boys in a number of countries. Assessments undertaken by UNICEF in Darfur and by the Women's Commission in Uganda found that displaced girls did not attend school for specific reasons, including early marriage and the lack of support for girls' education by caretakers⁴⁸. Many girls were also kept away from schools because parents feared rapes and other attacks on the way to and from school⁴⁹. In some situations of displacement, however, such as the rural Nuba mountains of Sudan, there are actually more girls enrolled because the young boys have left for more urban areas.

Discrimination against displaced children from different ethnic or linguistic backgrounds also resulted in restricted access and irregular school attendance among displaced children in 2005, including in Bosnia and Herzegovina, Guatemala, Mexico, Peru, and Kos-

ovo (Serbia and Montenegro). In Bosnia and Herzegovina some schools were still divided along ethnic lines. In the education facilities that are organised along the "two-schools-under-one-roof" concept, children from different ethnicities are separated and follow different curriculums. This constitutes an impediment to reconciliation and made certain families belonging to minority groups delaying their return or sending their children to schools in other areas in order to avoid such discrimination. In Serbia and Montenegro, displaced Roma children also faced discrimination and segregation which contributed to a poor attendance rate, and sometimes exclusion from the education system. Some Roma children were placed in separate classes, others in schools for the "educationally handicapped" because their level of understanding of the Serbian language was perceived to be insufficient for entry into standard schools. The education of returning Georgian children has been a problem too, as education in the Georgian language continued to be prohibited in the majority of the break-away Republic of Abkhazia's elementary schools.

International agencies, local organisations and displaced communities have set up education programmes during and after conflicts, often with limited funding and materials. Encouraging examples of successful efforts ranged from child protection coordination networks set up by UNICEF across several regions of Somalia with a focus on the protection of internally displaced children to initiatives started by local organisations, like the Mutawinat Benevolent Company, an NGO group in Sudan that provides free legal services to poor internally displaced women and children. In Nepal, a similar initiative has been set up by a local organisation that monitors violence against women and children by assisting in the reporting of violations⁵⁰. The NRC Youth Pack programmes set aside half of the spaces in classes for young displaced or refugee girls. At the international level, the Inter-Agency Network for Education in Emergencies (INEE), a global network, developed minimum standards for the provision of education in emergencies in 2004. The Minimum Standards were used by NGOs and UN agencies throughout the year to improve provision of education for displaced and other conflict-affected children in emergency situations such as Aceh (Indonesia), the DRC, Uganda, and Iraq. However, education during emergencies remains one of the sectors most underfunded by the international community⁵¹.



Displaced girls in an IDP settlement in Côte d'Ivoire.
(Photo: Claudia McGoldrick/IDMC)



The massive destruction of houses in Kabul, Afghanistan prevents the return of many of the country's IDPs. (Photo: Christophe Beau/IDMC)

Housing, Land and Property Issues

Limited access to land and housing

Internal displacement inevitably results in people losing their homes and land, often their main source of subsistence. Access to land and shelter during displacement is critical to ensure minimum food security and self-reliance and limit dependence on humanitarian assistance.

National legislation with provisions for resolution of property and land issues

Bangladesh, Bosnia and Herzegovina, Burundi, Croatia, Côte d'Ivoire, Georgia, Guatemala, Indonesia, Iraq, Peru, the Philippines, Rwanda, Serbia and Montenegro (Kosovo), Solomon Islands and Sri Lanka

Access to land is often limited for political or security reasons. In several countries, such as Somalia, Uganda and the Philippines, IDPs are at risk of being attacked or caught in the crossfire if they venture too far from their camps. In other countries, including Georgia, Indonesia, Serbia and Montenegro, and Sri Lanka, authorities have been tempted to limit access to land and/or housing in efforts to prevent the integration of IDPs in their new places of residence. Although government or local initiatives to distribute land to IDPs exist in countries like Burundi, Colombia, Guatemala, Indonesia, Somalia (Puntland), Sudan and Uzbekistan, the size and the quality of the land provided is often insufficient to meet the needs of IDPs. Land distribution and reconstruction programmes have also been designed to provide an incentive for IDPs to return in Algeria, Iraq, Indian-administered Kashmir and Rwanda. The example of the Rwandan “villagisation” programme illustrates, however, how such initiatives can actually result in even worse access to land. IDPs were

forced to settle in newly-constructed villages without sufficient land plots, which allegedly obliged some of them to work as wage labourers for military officers who had grabbed their former land.

Conflicts and tensions triggered by lack of land

The political and economic value of land complicates attempts to finding satisfactory solutions for those who have been deprived of their land and housing. In several countries, people have been deliberately displaced from their homes and land to limit the influence and presence of certain groups (Burma, Balkans, Somalia) or reward political supporters (Rwanda, Zimbabwe, Kenya). Land scarcity and unequal distribution of land have triggered conflict and displacement in numerous situations, including Bangladesh, Guatemala, Burundi, Nigeria, Côte d'Ivoire and Rwanda. In Colombia, people have been displaced by armed groups in search of new land for drug cultivation. The grabbing of land left behind by IDPs in countries like Afghanistan, Rwanda and Somalia is also a common phenomenon creating tensions and compromising return.

Restitution and compensation crucial to sustainable peace

In recent years, there has been growing recognition that land, housing and property issues are crucial to building sustainable peace, and that it is essential to find remedies for the injustices that provoked displacement and the destruction or occupation of land and houses through restitution or compensation. Conse-

quently, provisions for the resolution of property and land problems have been included in peace agreements or documents establishing the post-conflict environment in 16 of the countries affected by internal displacement.

The lack of fair and efficient restitution and compensation mechanisms is a clear obstacle to post-conflict reconciliation since restitution is perceived as an element of restorative justice in response to violations of rights leading to or resulting from displacement. Restitution and compensation not only facilitate the exercise of the right to return but also make it sustainable and provide a remedy to the violation of property/possession rights and the right to adequate housing. Several universal and regional instruments, as well as UN resolutions and principles confirm these rights.

Principles on Housing and Property Restitution

At the normative level, the Sub-Commission on the Promotion and Protection of Human Rights in August 2005 endorsed the Principles on Housing and Property Restitution for Refugees and Displaced Persons⁵² presented by the Special Rapporteur, Sergio Paulo Pinheiro. In view of the multiplicity of ad hoc restitution mechanisms in various countries, the Principles represent an effort to increase the consistency of responses as well as their conformity with international standards. A parallel initiative to integrate property restitution programmes into the UN institutional and policy framework is also ongoing⁵³.

The “Pinheiro Principles” were drafted to address a wide variety of displacement situations, ranging from countries with comparably well-developed administrative systems and land registries, such as Bosnia and Herzegovina, to others with much more fragile or incomplete systems. In most countries affected by internal displacement land and houses are used under customary law and are not registered. In some of these countries, including Afghanistan, the DRC, Rwanda and Uganda, state and customary or religious laws overlap and sometimes contradict each other. Other countries do not have a unified legal framework governing property ownership accepted by all parties, and legislation depends on who controls a particular region (Sudan and Sri Lanka).

Such complexities explain the difficulty of establishing efficient property dispute resolution mechanisms and the necessity of adapting mechanisms to the cultural

Guiding Principles and housing, land and property issues

The Guiding Principles on Internal Displacement clearly recognise the right of IDPs not to be displaced from their homes arbitrarily (principle 6), the right not to be arbitrarily deprived of property and possessions (principle 21) and the right to return to their homes voluntarily and in safety and with dignity (principle 28). They also reiterate the right of IDPs to restitution or, if not possible, compensation (principle 29). In addition, principle 9 emphasises the special dependency and attachment to land of certain groups of IDPs which creates a particular obligation to protect these groups from displacement.



A housing project for IDPs on the outskirts of Bucaramanga, Colombia. (Photo: IDMC)

and legal context of each country. Creative solutions are required to establish possession in the absence of land registries and to implement the related right to restitution or compensation. This is particularly difficult in situations where long-standing displacement has led to competing legitimate claims over the same land, such as in Afghanistan, Cyprus and Iraq. In many cases, traditional dispute resolution mechanisms can be quicker and, if in line with international standards, more effective than a system based on statutory law.

Land titling programmes

IDPs whose possessions depend on customary law are particularly vulnerable to land grabbing and face difficulties in repossessioning their land and housing. In several countries, including Indonesia and Sudan, unoccupied land is considered state property that can be freely sold. An increasing number of countries affected by internal displacement have initiated land reforms through individual land titling to develop land registries. In order to promote such initiatives, a High Level Commission on Legal Empowerment of the

Poor was established by a group of industrialised and developing countries in September 2005. The Commission works on the assumption that formal titles will improve security of tenure and enable the owners to access loans as a means of reducing poverty. There are concerns, however, that the most vulnerable will not be able to afford or keep land and housing once it acquires a market value⁵⁴. Women tend to be particularly disadvantaged by the land titling system, as the titles usually bear only the name of the husband. Privatisation can also contribute to the legalisation of land grabbed from IDPs as has been the case in Colombia, Sudan and Rwanda. While formalisation of land ownership can have positive effects when used to fight discrimination, for example that of the Roma minorities in south-eastern Europe, the cases of Colombia and Sudan, where IDPs were rendered homeless as a consequence of privatisation, demonstrate the need to use this solution with caution.

Women

As stressed in the 2005 report on women and the right to adequate housing, by the UN Special Rap-

porteur Miloon Kothari⁵⁵, the rights and interests of women require special consideration in the design of land reforms. Although women's rights are legally protected in most countries, in practice social and cultural pressure often lead women to give up on their rights to avoid exclusion from the group. In addition, statutory law often defers to customary or religious law for inheritance issues, leaving women with limited means to defend their rights. The issue of access to land, property and the right to inherit affects all women but is particularly significant in IDP situations which often result in women becoming widows and/or heads of household. In Rwanda, it is estimated that widows represent 50 per cent of all women, and 30 per cent of the claimants in land disputes. Their difficulty in inheriting their husbands' property leaves them in precarious situations. Several studies confirm the link between the lack of secure tenure and violence against women or prostitution. An abused woman will hesitate to leave her husband if she has no property and if she might be forced into prostitution to survive. In this context, the entry into force in November 2005 of the Protocol to the African Charter on the Rights of Women in Africa, which includes provisions regarding ownership and inheritance rights of women, is a noteworthy development.

Overview per region

In 2005, land and housing issues in Africa have been dominated by Zimbabwe's government-led Operation Murambatsvina ("Clean the rubbish") which started in May and created a wave of internal displacement. An estimated 600,000 people were affected by forced evictions and demolitions of homes, mainly in urban areas throughout the country. Most of those evicted have been sent back to rural areas where they currently endure poor living conditions. Some of them had already been displaced by the "fast track" land reform which started in 2000. Côte d'Ivoire is still suffering from the 1998 land reform which limited ownership to Ivorians, excluding immigrants and their descendants, who were called in decades ago by the previous president to cultivate land. The reform fuelled ethnic tensions, pushing people into displacement. The 2003 Linas-Marcoussis accords require modification of the land tenure act but this key demand of the Ivorian opposition has not yet been met.

In South America, extreme land concentration in the hands of large landholders and companies has generally been at the expense of the indigenous population,

which is disproportionately affected by displacement, expropriation and forced evictions. Agreements and legislation in Colombia, Guatemala, and Peru, include references to or mechanisms for repossession and compensation for IDPs. However, very few IDPs have benefited from these mechanisms. The Colombian government, in response to a 2004 judgement of the Constitutional Court, increased its 2005 budget to buy and distribute land to IDPs. But forced displacement for purpose of land-grabbing has continued and the court decision is counter-balanced by a proposed law on privatisation of forest land which would legalise land-grabbing by paramilitary officers and threatens the rights of indigenous people to recover their land.

In Burma, burning and confiscation of land and houses continue unabated. In the Philippines, where control over resources and land is at the core of the 30-year conflict, a major bone of contention in the ongoing peace talks between the government and the Muslim rebels of the MILF is the issue of "ancestral domain", referring to the rebels' territorial demands of parts of Mindanao and control over its resources. In Afghanistan, a presidential decree signed in March 2005 provides for land distribution to IDPs, refugees and other vulnerable people. The situation in terms of restitution is particularly complex since the Taliban produced thousands of new title deeds which have led to multiple ownership claims over the same property.

The issue of competing claims also affects East Timor where various waves of displacement and return have led to widespread illegal occupation. It is estimated that 50 per cent of houses in Dili are illegally occupied. IDPs who left East Timor face serious difficulties in repossessing their property. They are not allowed to make land ownership claims because the country has become independent and ownership is limited to citizens. In Indonesia it is mainly the lack of documentation which prevents IDPs from acquiring, repossessing or being compensated for their property. In Sri Lanka, attention and reconstruction funds have been directed to people displaced by the tsunami at the expense of those displaced by the conflict. A number of actors promote a consolidated approach with regard to land and housing issues so that conflict IDPs, some of whom have been displaced for up to 20 years, are not forgotten.

In Europe, international and regional organisations have showed great interest in the protection of property rights. Land and property issues are dealt with in two different ways: while in some countries the focus

is on restitution (Bosnia and Herzegovina, Serbia and Montenegro including Kosovo, and Croatia), others have chosen to offer compensation (Turkey, Russian Federation). In Bosnia and Herzegovina, the property repossession process has almost been completed with over 92 per cent of claims solved as of January 2005. In Kosovo, 96 per cent of claims have been decided upon by the internationally-run Housing and Property Directorate, although only 40 per cent of them had been implemented as of June 2005. Repossession of land and business premises, which is crucial for self-reliance, has been even slower since owners have to go through lengthy court procedures. Croatia's restitution process is still complicated by the looting of repossessed private properties and the unresolved issue of restitution/compensation for socially-owned apartments⁵⁶. The situation is actually worsening since the Croatian state has continued in 2005 to initiate court procedures in hundreds of cases, seeking cancellation of occupancy rights. Those, mainly Serbs, who left their apartment during the war but returned and are currently residing there, are at risk of displacement if the courts confirm cancellation of tenancy-rights and proceed with their eviction. This includes cases where the occupancy rights holder's absence resulted from forced eviction by the military and despite legal efforts to regain possession⁵⁷. In Turkey, commissions set up under the 2004 compensation law have begun to examine compensation claims. However, the high rejection rate of 72 per cent of claims processed (as of September 2005) has led to criticism of the requirement to produce evidence proving ownership and circumstances of the destructions, which in effect renders most IDPs ineligible for compensation. This practice contradicts a judgement of the European Court of Human Rights (ECHR) issued in June 2004, *Dogan v. Turkey*⁵⁸, where the Court considered that authorities should be able to establish possession in the absence of title deeds. The ECHR judgment in the *Xenides-Arestis* case⁵⁹ (Cyprus) confirmed the Court's role in protecting property rights (see *Europe regional overview*). In Russia, the compensation scheme for destroyed property, which was discontinued during 2005, has been assessed by observers as poorly implemented and plagued by corruption.

The Middle East still offers gloomy perspectives in terms of restitution and compensation for confiscated or destroyed properties. The Iraqi Property Claim Commission created in 2004 had as of July 2005 only decided on six per cent of the 126,000 claims it received. Concerns have been raised that repossession has resulted

in new violations of the rights of current occupants. In addition, the Commission only covers confiscation of property and does not address destruction such as the Anfal campaign against the Kurds or the displacement of Marsh Arabs in the 1990s. Multinational forces are responsible for most forced evictions and demolitions in Iraq since 2003, but apart from exceptional cases such as Fallujah where a Commission to indemnify victims of destructions was created in 2005, there is no mechanism to compensate victims of destruction by international forces.

Israel announced in February 2005 the end of its policy of demolishing houses belonging to suicide bombers. NGOs have welcomed the decision, while pointing out that most demolitions of Palestinian homes were not in fact punitive but were linked to permit violations, military purposes and the establishment of new Israeli settlements. In the absence of appropriate mechanisms, few people have received compensation for the destruction of their homes.



Nepalese soldiers from the UN mission in Congo protecting a camp for displaced persons in Tche, Democratic Republic of Congo. (Photo: Sven Torfinn)

Integrated Missions: Impact on IDPs?

Few of even the most experienced humanitarian workers would be able to clearly define integrated missions, even less how they impact on IDPs. Indeed, while there is at least widespread acknowledgment (if not acceptance) that integrated missions are an increasing phenomenon, there is neither a common definition of the concept nor consensus on what this entails in practice. What is clear is that integrated missions raise some particularly thorny issues affecting, among others, the impartiality of humanitarian assistance – not least to IDPs in situations of conflict or post-conflict recovery.

For practical purposes, an “integrated mission” has been defined as “an instrument with which the UN seeks to help countries in the transition from war to lasting peace, or to address a similarly complex situation that requires a system-wide UN response, through subsuming actors and approaches within an overall political-strategic crisis management framework”⁶⁰. This reflects the UN’s (ongoing) re-evaluation of its approach to peacekeeping and peacebuilding – sparked by the spectacular failures in Somalia, Rwanda and Bosnia in the 1990s – moving towards greater inte-

gration and coherence between the numerous actors involved in both conflict and post-conflict settings. Mandates may range from “immediate stabilisation, and protection of civilians to supporting humanitarian assistance, organising elections, assisting the development of new political structures, engaging in security sector reform, disarming, demobilising and reintegrating former combatants and laying the foundations of a lasting peace”⁶¹.

Integrated missions are first given formal recognition in the UN Secretary-General’s 1997 report on *Renewing the United Nations – a Programme for Reform*⁶², where he declared that system-wide integration particularly of peacekeeping and peacebuilding activities both in the field and at headquarters would be one of his key objectives and that his Special Representatives (SRSGs) were to be given more authority over UN field operations. Subsequently, the August 2000 *Report of the Panel on United Nations Peace Operations*⁶³, commonly known as the *Brahimi report*, proposed numerous reforms to the structure and mechanisms of UN peace operations with the overall goal of improved

integration and coherence (although not referring explicitly to “integrated missions” as such).

The integrated mission concept was first applied in Kosovo in 1999 and has since been revised and adapted to UN missions in East Timor, Sierra Leone, Afghanistan, Liberia, the DRC, Burundi, Haiti, Iraq, Côte d’Ivoire and, as recently as March 2005, Sudan. The approach, structure and objectives have differed in each mission – often owing less though to careful mission planning than to the dictates of senior mission management, and in some cases resulting in precisely the opposite of integration and coherence.

Liberia – where some 260,000 IDPs were officially returned to their areas of origin before the end of 2005 – illustrates many of the potential problems and controversies surrounding integrated missions. The UN Mission in Liberia (UNMIL) – with almost 15,000 troops one of the largest peacekeeping missions in the world – is headed by an SRSG supported by two deputies, one of them the Humanitarian Coordinator. A key concern has been the fact that the SRSG effectively manages not only the Humanitarian Coordinator but also all the UNMIL military contingents, raising fears that humanitarian mandates take second place to political and military ones.

Growing divisions in the humanitarian community in Liberia were exacerbated by the formal integration of the UN Office for the Coordination of Humanitarian Affairs (UN OCHA) into UNMIL in 2004. This made UNMIL – like the UN Mission in Afghanistan (UNAMA) – a model of “maximalist integration”, where all of the responsibility and structures for humanitarian coordination were located within the mission’s management structure⁶⁴. The lack of an effective replacement for OCHA has hindered humanitarian coordination, according to an April 2005 joint assessment by the United States and the European Commission, and the subsequent proliferation of often unrepresentative coordination mechanisms related to IDPs has ultimately caused “mass confusion and inertia”⁶⁵.

International NGOs in Liberia have consistently voiced concerns that humanitarian coordination, particularly of the return process, has been politically driven by UNMIL. The UN’s desire for a “success story” ahead of October 2005 elections in Liberia, they argue, has been the main reason for what they see as a rushed and poorly planned reintegration process. They have argued that the necessary safeguards of voluntariness, the availability of full and objective information, and the declaration of return areas as safe based on an

objective assessment, all risked being jeopardised. A dire lack of services as well as continuing protection concerns in areas of return has reportedly resulted in IDPs returning to the camps – evidence, say NGOs, of the failure of the process⁶⁶.

The controversy over coordination within the integrated mission in Liberia also owes much to the personalities of particular individuals within UNMIL senior management, not least to former SRSG Jacques Paul Klein, whom many in the humanitarian community accused of pushing deadlines for his own glorification⁶⁷. Klein left Liberia suddenly in April 2005, and was later replaced by Alan Doss whose earlier tenure as Deputy SRSG/Humanitarian Coordinator during the immediate post-conflict recovery phase in Sierra Leone was widely praised. While critics insisted that Sierra Leone’s return and resettlement process – as in Liberia at its height ahead of presidential elections (in early 2002) – was a highly flawed and politically driven process, it was widely agreed that the mission’s operational integration and overall success was attributable largely to Doss’s personal leadership skills, humanitarian background and judgment.

In Côte d’Ivoire too there have been notable tensions between the UN Mission (UNOCI) and international NGOs, with some of the latter complaining about the constraints of working alongside a mission that integrates its peacekeeping and humanitarian components (although in this case UN OCHA has maintained a separate identity). These tensions came to a head following the resumption of hostilities in Côte d’Ivoire in November 2004, when the response of French troops was widely viewed as highly partial, and by association, that of UNOCI as well. With UN peacekeepers perceived to be taking sides in the conflict, and due to the nature of the integrated mission, Save the Children-UK was one NGO that argued that it was very difficult to resume activities in the conflict-affected areas and still be seen as impartial and independent humanitarian agencies⁶⁸. Rebutting these criticisms, the Humanitarian Coordinator in Côte d’Ivoire, Abdoulaye Mar Dieye, defended the model of coordination used in the country and insisted that the “true enemy” in addressing the needs of half a million IDPs and other vulnerable groups was the lack of means and resources. It has also been clear that international NGOs themselves have been divided on the issue of relations with the UN Mission, with some relying heavily on UNOCI for security information and evacuation, and some for logistical support such as helicopters. Consensus on precisely where to draw the line has never been reached.

Indeed, some remain convinced that mission integration is often the target of blame in order to deflect criticism from a host of other shortcomings, not least the performance of humanitarian agencies themselves. The DRC, which has experienced an integrated mission in perhaps the loosest sense with little or no “blurring” between political and humanitarian mandates – arguably ideal operating conditions for critics of integrated missions – nevertheless witnessed the world’s worst humanitarian disaster since 1945, with upwards of four million people dying directly or indirectly as a consequence of the country’s civil war between 1998 and 2004. The reasons for this disaster remain complex and disputed, but most certainly rest at least in part on a desperately weak response – be it political, military or humanitarian⁶⁹.

In 2005 the debate around integrated missions continued to evolve, and various reforms were initiated. The Humanitarian Response Review⁷⁰, initiated by the UN Emergency Relief Coordinator and published in August 2005, recognised that the current model of UN integrated missions “does not sufficiently take into account humanitarian concerns and represents a challenge for a more inclusive humanitarian system”. Within this, the collaborative approach for IDPs “depends too often on the Humanitarian Coordinator’s (HC) authority and skills”. Key recommendations of the review therefore included strengthening the role and functions of HCs and improving the selection process, and the assignment of clear responsibilities to lead organisations at sector level, with a priority in relation to the protection and care of IDPs.

The September 2005 World Summit – effectively endorsing recommendations made by the UN Secretary-General in his report on UN reform, *In Larger Freedom*⁷¹ – proposed the creation of an intergovernmental Peacebuilding Commission to help countries’ transition from war to peace. This was approved by the UN General Assembly and the Security Council in December 2005. The new body will be backed by a support office and a standing fund, and will effectively provide a forum for the coordination of integrated missions at headquarters level.

Towards the end of 2005 reviews were also under way of the UN Department of Peacekeeping Operations’ integrated mission planning process (IMPP) as well as the Secretary-General’s Note of Guidance on how to implement integration, which was approved in January 2006. The Note includes guidance on particularly controversial issues such as quick-impact and “hearts and minds” projects where peacekeeping troops deliver humanitarian assistance, and the reporting lines between the Deputy SRSG/Humanitarian Coordinator, the SRSG and the Emergency Relief Coordinator in order to better ensure the protection of humanitarian principles and space in integrated missions. At the same time the Note acknowledged that the concept of integrated missions is an evolving one and that further guidance in the form of regular updates will be required to reflect changing realities.



A child soldier with his machine gun patrols an ethnic Hema militia camp near Bunia in the Democratic Republic of Congo. (Photo: Reuters/Jacky Naegelen)

Armed Non-State Actors

Despite the diminution of the number of conflicts since the late 1990s, armed non-state actors (NSAs) were still active in 28 of the 50 countries affected by conflict-induced displacement in 2005, including ten in Africa and eight in Asia. As a result, millions of IDPs remained at the mercy of NSAs.

To different extents, NSAs controlled part of the territory of 11 countries affected by internal displacement in 2005. Some governments exerted almost no effective control outside of the capital, as in Afghanistan and to a lesser extent in Nepal, or formally accepted a de facto partition of the state, at least temporarily, as in Côte d'Ivoire. The Georgian government did not have any control over the breakaway republics of Abkhazia and South Ossetia, nor did the Republic of Moldova over the separatist region of Transdniestria. The Transitional Federal Government for Somalia which relocated from Kenya to southern Somalia in June 2005 exerted virtually no control over the warlords active throughout the country.

NSAs were a major agent of displacement in at least 14 countries in 2005. Very often, retaliation against those groups by government forces caused displacement as well. The largest new displacements by NSAs in 2005 occurred in Colombia and in the DRC. In Colombia, among other reasons, people were deliberately displaced by armed groups who sought to establish control over strategic territories, expand the cultivation of

narcotics, or take possession of land and private properties. The ex-FAR/Interhamwe, a Rwandan Hutu rebel group that fights against the Rwandan government, and local Congolese militias, all caused large-scale internal displacement in eastern DRC.

The main violations committed by NSAs against IDPs in 2005 were torture, sexual violence, indiscriminate attacks, abductions, forced recruitment (particularly of children), forced labour, looting and burning of property. While both state and non-state actors committed human rights violations against IDPs and humanitarian workers, there is generally less information on actions committed by NSAs, mainly due to the difficulty for outside monitoring groups of accessing conflict zones or areas controlled by NSAs. There is also virtually no public information available on situations where NSAs may have provided assistance to IDPs.

In his report to the UN Security Council on the protection of civilians in 2005, the UN Secretary-General underlined the need for all parties including non-state actors to provide access to vulnerable populations⁷². However, access to IDPs in areas where NSAs were active was generally difficult throughout the year. In Iraq, the UN and many other international organisations continued to rely on local staff and national NGOs on the ground to assist IDPs and returnees. In Uganda and Somalia, several organisations resorted to armed escorts to provide assistance to the displaced. Humanitarian organisations came under attack by the Lord's Resistance Army (LRA) in Uganda and in southern Sudan in November 2005, resulting in the death of four aid workers. Better access to IDPs was however noted in Burundi and the DRC in 2005, due to the lessening of violence.

International actors have engaged with NSAs to try to improve the protection of civilians. ICRC has worked with the rest of the Red Cross/Crescent network to promote humanitarian law through workshops and courses which include NSAs. The UN Security Council has imposed sanctions against specific armed groups. UN Special Rapporteurs have discussed human rights concerns with NSAs and UN agencies have entered into dialogue with them to secure access to vulnerable populations. In some countries affected by internal displacement, this engagement has led to demining and demobilisation of child soldiers. NGOs, such as the Norwegian Refugee Council, have involved NSAs in training workshops on IDP protection. But more needs to be done in order to ensure that NSAs do not hinder assistance to IDPs, nor jeopardise staff and beneficiary security⁷³.



A researcher from a Ugandan civil society group conducts an interview in an IDP camp in the north of the country (Photo: Jesse Bernstein/IDMC)

Civil Society Involvement in Situations of Internal Displacement

Local organisations working on behalf of internally displaced people remain an under-utilised asset in providing information on situations of internal displacement as well as in advocating for the rights of IDPs. While many local organisations and IDP groups share common difficulties, in a number of cases local organisations have proven to be vital in assessing situations of conflict and displacement, providing and attending forums for the exchange of information, raising awareness of IDPs and their rights, and in situations where security conditions prohibit the presence of international agencies, acting as the first port of call for IDPs in need of assistance. In many situations the work of international humanitarian agencies would not be possible without the close cooperation of local organisations, yet the resources available for local groups are meagre. In addition, while the participation of IDP groups and national organisations working on behalf of IDPs is appreciated and valued, often these same groups are

given few opportunities to set their own priorities nor are they consulted during the initial stages of humanitarian programming and planning.

Common difficulties

Virtually all local organisations in situations of displacement are restricted by a lack of resources. The ability of local groups to broadcast advocacy messages and report findings to international audiences is often hindered by high translation costs, as in most situations of internal displacement English is not the working language. Resource constraints are the most serious in countries where ongoing conflicts exist and local organisations are on the front lines of providing assistance, such as in Somalia, Afghanistan and Iraq.

Many local organisations operate in hostile political climates where raising awareness about IDPs is often

politically sensitive. As a result, local groups are regularly scrutinised by national authorities and often face government harassment. In Turkey, for example, in November 2005 a human rights defender who co-published a report concerning the forced displacement of Kurdish people was fined by a Turkish court for allegedly “incit[ing] people to enmity and hatred because of class, racial, religious, confessional or regional differences”⁷⁴. While the general political environment in which local organisations operate in Turkey has improved, so much so that the Turkish government publicly stated it would consult with NGOs in the drafting of a national IDP strategy, the court ruling against the IDP rights defender noted above illustrates the continued scrutiny in which local rights organisations working with and for displaced persons operate. National organisations in Turkey still do not systematically participate in international coordination mechanisms.

Displaced persons themselves also face government harassment, hindering their ability to organise and raise attention about their situations. In Colombia, the IDP population has experienced selective assassinations of IDP leaders, as well as death threats, and kidnappings by paramilitaries and guerrilla groups. In Nepal, in May 2005 IDPs demonstrating in Kathmandu were arrested and detained. Most of those arrested were members of the Maoist Victims Association, a group of Nepali citizens who have been targeted and displaced by Maoist rebels.

In May 2005, Mudwadi Ibrahim Adam, chairperson of the Sudan Social Development Organisation (SUDO), a voluntary organisation providing emergency shelter and relief to IDPs in the troubled Darfur region of Sudan, was arrested for the third time as he was about to board a flight to Ireland to be presented with an award for human rights defenders. In this instance, Mudwadi was released on bail, although previously he had been charged with “undermining the constitutional system or the unity of the country” and “waging war against the state or supporting those who do so” – these charges were dropped in 2004⁷⁵. Local human rights advocates working on IDP issues in the DRC, Burma, Turkmenistan, Uzbekistan and Zimbabwe also regularly face harassment and intimidation from their national governments or armed non-state actors.

Shared success in raising awareness

In a number of contexts, local NGOs played formidable roles in providing forums for the exchange of

information as well as providing substantial input in existing forums and coordination meetings. In the DRC, a number of local NGOs participated in the *Commissions des mouvements de populations* (Population Movement Commissions), which attempt to highlight the situation of internally displaced people in the east of the country. The Commission acts as a forum for information exchange amongst local actors and UN agencies. In the DRC local NGOs also participate with UNICEF and OHCHR in meetings on the situation of children, many of whom are displaced. In Uganda, the Refugee Law Project (RLP) of Makerere University holds regular seminars on issues related to both refugees and IDPs. The seminars are widely attended by representatives of UN agencies, diplomats, and refugees who live in Kampala. In December 2005, the RLP convened a seminar on “War and Humanitarianism” which examined the impact of humanitarian delivery on IDPs and the conflict in northern Uganda⁷⁶.

In Burundi, a local NGO, ITEKA, is represented at a coordination forum on IDP protection attended by the UN and government officials. In Georgia, IDP organisations have helped to bring the attention of the government, donors, and even the general public to issues such as collective centre degradation and psychosocial trauma for IDPs. In Kosovo, IDP representatives are invited to participate in municipal and regional working groups which are charged with assessing the feasibility of returns and screening return projects. In Kenya, the national human rights commission chairs an IDP network aimed at strengthening the advocacy efforts of those who have been displaced as a result of ethnic violence in the country. While the network has only recently been established, it hopes to eventually act as an umbrella group for IDPs from areas throughout Kenya⁷⁷.

Local NGOs are also important in filling information gaps on a variety of IDP-related issues. In Serbia and Montenegro, Sveti Spas, an association of IDPs, carried out a study of 180 IDP families to analyse their demographic characteristics and intentions with regard to return and local integration. A similar study was carried out in northern Kosovo by the IDP Information Centre, a local NGO. In the Philippines, the Mindanao Emergency Response Network, a coalition of national and international NGOs, and Bantay Ceasefire, a network of grassroots organisations, have both conducted missions to investigate armed violence, written reports on their findings, and established early warning networks. Also in the Philippines, Balay, a human rights NGO providing psychosocial rehabilitation to IDPs and other victims of human rights violations in the Philippines, addressed the situation of children in conflict

and displacement by assessing possible approaches for the implementation of psychosocial interventions in schools located in affected areas.

In Burma, community-based organisations played a fundamental role in designing survey questions and facilitating research for a report released in October 2005 by the Thailand Burma Border Consortium entitled "Internal Displacement and Protection in eastern Burma"⁷⁸. As eastern Burma remains inaccessible to international observers, the report could not have been produced without the assistance of local community groups. The report revealed the numerous coping mechanisms developed by displaced persons, including early warning systems, threat management practices, child protection measures and strategies for avoiding landmines. In September 2005 the Darfur Consortium, a coalition of more than 30 Africa-based and Africa-focused NGOs, published a series of conclusions focused on ensuring the protection of civilians in Darfur⁷⁹. The conclusions, largely directed at the African Union Mission in Sudan (AMIS), provide suggestions on to how best ensure that those who commit abuses in Darfur are held accountable. Reports published and produced by local organisations in Turkey, Uganda and Colombia have also proved extremely useful in understanding situations of internal displacement and conflict.

Utilising national mechanisms and advocating for the rights of IDPs

In a number of instances, local groups have engaged different government bodies, such as national judiciaries and legislatures in an attempt to both improve the humanitarian situation faced by IDPs and seek legal redress on behalf of displaced persons. In Colombia, in November 2005 the government allocated \$2.2 billion to improve the response to the IDP crisis as a result of a ruling by the country's Constitutional Court. The court ruled in favour of the Colombian Commission of Jurists which represented IDPs and argued that the government response to the IDP situation did not comply with a national law on internal displacement passed in 1997 nor the UN Guiding Principles on Internal Displacement. In its decision, the court noted the government's response was unconstitutional and obliged the government to improve the assistance it provided to displaced persons and file progress reports with the court. While the court's decision is a legal victory for IDPs and could provide the basis for an enhanced government response, it remains unclear if the new funds allocated will be spent for the right purpose due to alleged corruption within local Colombian administrations.

In Israel, following an appeal by several organisations representing unrecognised Bedouin villages in the Negev desert to the Israeli Supreme Court, the Interior Ministry in April 2005 began the process of granting recognition to one of the unrecognised villages, Um Batin, and providing municipal services to it. Bedouin villagers in Israel are at risk of being displaced and resettled in newly created towns by the government.

In the Philippines, local organisations have pushed the national Congress to pass a resolution on the adoption of the Guiding Principles on Internal Displacement. At the end of 2005 the resolution was still pending.

Through general advocacy on the rights of IDPs, and by providing direct legal aid to displaced persons, local NGOs have also succeeded in stemming abuses and helped displaced persons realise their socio-economic rights. In the Balkans, numerous local NGOs providing legal advice have been supportive in facilitating socio-economic claims of displaced persons with uncooperative authorities, such as claims related to property repossession in Bosnia and Herzegovina. In Serbia and Montenegro, local NGOs such as Praxis and the Civil Rights Project Kosovo use mobile teams to provide legal aid to IDPs on a wide range of issues. Due to the advocacy work of Praxis, IDPs are now able to submit requests for official documents by mail, sparing displaced persons travel time and related costs in obtaining important documents such as birth certificates and land titles. Such documents are vitally important as they condition access to various social and economic rights. In Georgia, the Georgian Young Lawyers Association (GYLA) offers legal aid services to IDPs.

In northern Uganda, Human Rights Focus (HURIFO), a local human rights organisation, helped to curtail a sustained pattern of sexual abuse in Bobi IDP camp by organising a workshop in 2005 for community members to teach human rights and explain the process of lodging complaints. The Ugandan army officer in charge of IDP camps in northern Uganda also attended the workshop; his presence underscored the determination of the army to prevent and prosecute sexual abuse amongst its members. After the workshop, the behaviour of the army detachment improved dramatically, incidents of rape, defilement, and torture stopped⁸⁰.

Local organisations have also been involved in advocating for the rights of IDPs by using regional and international accountability mechanisms. In 2005 a coalition of Serbian NGOs submitted an alternative report on Serbia to the UN Committee on Economic,

Social and Cultural Rights which included information on the violation of IDP rights. At the most recent meeting of the African Commission on Human and People's Rights (ACHPR) in December 2005, international and Zimbabwean organisations, including the Zimbabwe Human Rights NGO Forum, succeeded in urging the ACHPR to denounce Zimbabwe's continued disregard for human rights. In a resolution adopted by the ACHPR, it condemned the human rights violations perpetrated by the Zimbabwean government and expressed alarm at the large number of internally displaced persons in the country. At a number of regional meetings with governments from central and east Africa which took place throughout 2005, Africa IDP Voice, a local IDP-rights organisation in Zambia, participated in the drafting of a regional protocol on IDP protection and assistance as part of the larger International Conference on the Great Lakes Region. It is envisaged that the IDP protocol will be signed by member states, mostly located in east and central Africa, in 2006.

Providing humanitarian assistance

In a number of countries local groups carry out direct humanitarian assistance with displaced persons. In Georgia, IDP organisations have been effective partners for humanitarian donors both in providing assistance to the most vulnerable displaced persons and for developing micro-credit and small- and medium-size enterprise programmes. In the DRC, local NGOs typically work with UN agencies and international NGOs to deliver assistance, as most of them lack the financial resources to implement their own programmes and depend on the UN and international organisations to carry out activities.

The activities of local organisations are especially important in situations where, due to security conditions, the presence of international agencies is either limited or non-existent. In Iraq, as many international organisations have pulled out of the country or dramatically scaled back their presence, local NGOs play a key role in the delivery of humanitarian assistance to IDPs. Similar situations exist in Somalia and Afghanistan where, due to security conditions, international NGOs have limited access and use local NGOs as implementing partners in the delivery of humanitarian assistance. Local organisations in Somalia are central to the reconstruction process and often are the first to respond to displaced persons in need of assistance. In Zimbabwe, as the government has hindered the relief operations of a number of international organisations, local organisations, including church groups, are bet-

ter positioned to access displaced persons and are thus used by international organisations as implementing partners.

Despite the heavy reliance placed on local NGOs by the international humanitarian community, opportunities for their professional enhancement and development are insignificant. In addition to a lack of resources, as local groups also face political intimidation and in some cases persecution, the general state of local organisations remains precarious. Efforts are needed to augment their strength and ensure their sustainability.

Political Participation: IDPs' Voting Rights

Although the right of IDPs to participation in public affairs, in particular through elections, has recently been given more attention at policy level and in the field, developments in 2005 suggest that IDPs' voting rights remain largely neglected. Although still living within their own country, IDPs often remain second-class citizens, deprived of the possibility of casting their ballots in elections together with non-displaced voters.

The inability to vote is a common violation of the IDPs' human rights and should be regarded as a protection issue. The Guiding Principles on Internal Displacement restate the prohibition of discrimination against IDPs in the exercise of their voting rights⁸¹. This prohibition is based on standards clearly enunciated in international human rights instruments, in particular article 25 of the International Covenant on Civil and Political Rights, which protects the right to participate in public affairs and the right to vote and be elected free from discrimination and "unreasonable restrictions". The right to political participation is also firmly established under regional human rights instruments in Europe, Africa and America⁸². Taking into account the specific circumstances facing IDPs during displacement, the Guiding Principles insist that whether IDPs are living in camps or not should not be used as grounds to deprive them of their political rights. Furthermore, Guiding Principle 29 restates the right of IDPs to participate "fully and equally" in public affairs upon return or resettlement⁸³.

Obstacles and discrimination reported in 2005

The voting rights of IDPs continued to be subject to numerous obstacles and restrictions in several elections and referendums held in 2005. In many situations, the vote of IDPs was severely constrained by insecurity, violence and the collapse of infrastructure and services. For example, the lack of personal documentation and too short deadlines for registration were reported as obstacles to the participation of IDPs in the national assembly elections in Iraq in January 2005⁸⁴. In Sri Lanka, a significant number of voter cards were not distributed in tsunami-affected areas prior to the presidential elections in November 2005, despite instructions by the Election Commissioner to village officers

to identify the new residence of IDPs. Although the possession of a voter cards was not compulsory, it is believed that many voters felt unable to exercise their right to vote without the document⁸⁵.

Electoral laws and regulations can be inadequate to the special situation of IDPs. For instance, serious difficulties have been encountered by IDPs in Sri Lanka who have reached voting age during displacement and seek to have themselves registered. There is no specific obligation to register new voters residing in collective centres, so-called welfare centres, while such a requirement does exist for IDPs who have established a residence outside such centres. IDPs residing in welfare centres are required to provide detailed evidence proving their identity and their place of habitual residence. This supporting evidence, especially with respect to personal identity, is often unavailable due to the circumstances of their displacement. New applicants are also required to provide evidence of the registration of family members on electoral lists in their place of habitual residence, but inadequate access to these lists is a significant barrier to registration⁸⁶.

In some cases IDPs have been intentionally kept away from the polling stations. Authorities in Zimbabwe refused to address the deprivation of voting rights imposed on IDPs as a result of their forced eviction in 2005. Following the "clean-up" operation launched by the government in cities in May 2005, displaced people were removed from the voters' lists in their constituencies, and thereby unable to participate in a number of rural and urban council by-elections. Despite appeals from civil society groups, the Attorney General's office ruled out the possibility of updating the voters' roll⁸⁷. Deprivation of citizenship can be a means of excluding entire communities from participation in public affairs, as illustrated by the case of the Syrian Kurds. In an appeal to the Syrian government in 2005, Refugees International urged the authorities to end the statelessness of many of the country's Kurds who were deprived of their citizenship in 1962 and later displaced in an effort to "Arabise" north-eastern areas⁸⁸.

Since the presentation of the Guiding Principles to the UN Human Rights Commission and the General Assembly in 1998, more attention has been given to the protection of IDPs' voting rights. The clear restate-

ment of IDPs' right to political participation was followed by efforts to promote the protection of IDPs' voting rights among human rights and humanitarian actors. Reports published by the Brookings Institution Project on Internal Displacement in 2000 and 2004 on the political participation of IDPs in the region of the Organisation for Security and Cooperation in Europe (OSCE) have shed light on the various IDPs obstacles face in exercising their voting rights⁸⁹. Based on the findings of these reports, the Brookings Institution identified a series of common problems affecting the participation of IDPs in elections, and issued recommendations to promote IDPs' right to vote. Building on the OSCE's far-reaching commitments with regard to democratic institutions and its expertise in election monitoring and capacity-building, Brookings presented ten recommendations to the OSCE to ensure more consistent assistance to national authorities to safeguard the right of IDPs to vote⁹⁰.

Efforts to promote IDPs' voting rights

In various consultations held in 2005, attempts were made to address some of the obstacles hampering the vote of IDPs in the OSCE region and elsewhere. Although the solutions designed have produced mixed results, they demonstrate that the participation of IDPs in electoral processes requires special attention from the relevant authorities, with the support of the international community if necessary. The section below reviews some of the responses developed in 2005 at the country level to protect IDPs' right to vote.

Special polling stations

In July 2005, voters in Uganda were called to the polls to declare their view on the restoration of a multi-party system. The Ugandan authorities ensured that polling stations were available in each of the IDP camps in northern Uganda. With the exception of one incident in Lira, where IDPs were prevented from leaving their camp to vote in other areas where they were registered, observers did not report significant problems⁹¹. However, an "Action Plan" compiled by IOM in May 2005 identified obstacles still hampering the participation of IDPs in the 2006 national elections⁹². For instance, it was unclear whether IDPs in urban centres, who are not included in official IDP statistics as they do not receive food rations from WFP, would be able to participate. Furthermore, the ongoing violence in northern Uganda was likely to trigger more population movements, while the Elections Commission did not seem to have the capacity to update voters' registers in time.

The creation of special polling stations seems to be a solution particularly applicable to situations where insecurity hampers the free movement of IDPs. In Iraq, "improvised" polling stations were set up to allow people displaced from the city of Fallujah after an US-led offensive in November 2004 to participate in the elections held in January 2005⁹³.

Special polling stations have also been used to prevent tensions between displaced communities and local populations. This was the case during the June 2005 parliamentary elections in Lebanon, where special stations were installed in villages of origin for displaced Christians, so as to prevent friction between voters and current village residents⁹⁴.

Special registration procedures

Electoral legislation in Sri Lanka enables IDPs registered in their place of former residence to cast their ballot in the area of displacement, provided they apply in writing to the Election Commissioner within one week of the announcement of elections. However, inadequate public information regarding this requirement, lack of access to electoral lists to verify registration in places of former residence, the short time allowed to make such applications and the requirement to provide supporting documentation and endorsements regularly frustrate the efforts of IDPs seeking to cast their ballot under this procedure. The situation is further complicated by ambiguities relating to the necessity and applicability of these procedures to IDPs living in welfare centres and those accommodated privately. During the November 2005 presidential election, the application closing date initially set by the Election Commissioner was extended by one week, perhaps in recognition of these shortcomings, but poor public awareness about the extension did not, in practice, improve access to balloting⁹⁵.

In preparation for the constitutional referendum held in December 2005 in the DRC, special registration stations were installed in IDP camps in Ituri, Kivu and northern Katanga⁹⁶.

Early voting

IDPs can be allowed to participate in early voting organised for special groups. This was the case during the municipal elections held in March and April 2005 in Macedonia. Early voting for soldiers, persons in custody and IDPs was conducted in some 40 special polling stations on the day before each round. However the OSCE election observation mission noted the complexity of the operation, requiring express mail for the

delivery of election materials and the return of envelopes with the votes to the municipal election commissions. The mission recommended that the current form of early voting should be eliminated⁹⁷.

Information and civic education

Complementing special registration and voting procedures, campaigns and education programmes on elections and public participation need to be developed among displaced populations, to ensure they can participate and make an informed decision. Since early 2004, USAID has provided nearly \$3 million to help local civil society organisations in Uganda implement programmes in support of political pluralism and the strengthening of the electoral process. Within this framework, local NGOs organised public dialogues, candidates' debates, radio programmes and civic education programmes in IDP camps across northern Uganda. Resources have been allocated to support the provision of drama group programmes on election-related awareness in IDP camps. Materials relating to democracy and elections were distributed within IDP camps, including posters and t-shirts in camps in Pader, Gulu and Kitgum districts⁹⁸.

Institutions in exile

The representation of displaced communities through institutions in exile has been put in place in several countries but remains problematic. Maintaining a special representation for displaced communities in parliament or executive institutions has been a way for national authorities to assert their sovereignty claims over portions of their territory under occupation or in secession. In the parliamentary elections held in Azerbaijan in November 2005, nine members of parliament were to be elected from "exiled" constituencies originating from territories currently occupied by Armenia. The OSCE election monitoring mission reported about the challenge of registering and securing participation of more than 283,000 displaced voters spread across the country⁹⁹. In Georgia, the exiled regional government of Abkhazia has not been subject to any democratic control since it left Abkhazia in 1994, although it still controls significant resources from the state budget to maintain special schools, health clinics and other services for displaced communities¹⁰⁰.

Free choice of place where to vote

In situations of return, the possibility for IDPs to cast their vote in areas of origin is a key component of the reintegration process. Elections in transition phases should help returnees or displaced people planning to return feel represented through political institu-

tions in areas of return. In Iraq, displaced Kurds were authorised to vote in their areas of origin during the parliamentary elections in January 2005. In the absence of absentee ballot provisions, large numbers of displaced in camps in northern Iraq went to cast their vote in Kirkuk, from which they had been displaced since 1991, as a strong signal of their will to return. In Liberia, the UN Mission was keen to complete the return of IDPs and refugees to their home areas prior to the October 2005 presidential and legislative elections. However, many IDPs who had registered to vote in their home areas were not able to return in time for the elections. There were reports of political candidates trying to take advantage of the situation and buy IDPs' votes against promises of food and transport. In August 2005, the National Elections Commission conceded that IDPs who could not return in time for the elections would be allowed to vote in camps, albeit only for the presidential ballot.

More guidance needed

The examples above illustrate that solutions to promote the vote of IDPs are not easy to implement, not only in the midst of conflict and ongoing population movements, but also during other stages of displacement crises. As suggested by the Brookings Institution, the emphasis should not "be more on the risks than the benefits that special voting arrangements can pose to the electoral process"¹⁰¹. Experience shows that regular procedures and arrangements are insufficient to ensure that IDPs can participate in elections. Special measures should be taken to remove administrative, political, social and security obstacles on their way to the polling stations. The mobilisation of displaced communities and civil society to disseminate information about voting procedures, the election framework and the campaign, and to organise the participation of IDPs is a primary requirement. The participation of IDPs in elections and referendums is still not properly documented, in particular outside the OSCE region. The election observation handbook developed by the European Union, the leading election observer outside the OSCE area, does not make any reference to IDPs¹⁰². It remains crucial to continue developing adequate technical solutions designed to enable IDPs to vote and promoting best practices more systematically among national authorities, international and regional institutions engaged in election monitoring, donors, and civil society organisations.

IDPs in post-conflict situations

The need for sustainable solutions for displaced populations has increasingly become part of the debate as to how to address post-conflict situations. At the policy level, the need to close the “gap” between humanitarian and development activities has led to more mechanisms for inter-agency collaboration and increased engagement in internal displacement issues by development actors such as UNDP and the World Bank. The inter-agency IDP policy endorsed in September 2004 underlines the responsibilities of UN Resident and/or Humanitarian Coordinators and Country Teams to ensure sustainable solutions for internally displaced in post-conflict situations.

The fact that many war-affected societies experience conflict, transition (also referred to as early recovery or recovery) and development simultaneously rather than in consecutive phases, has underlined the need for a concerted and coherent response from relief and development actors from the onset of a conflict. Moreover, the root causes of violent conflicts are often linked to widespread poverty and exclusion which has to be addressed in order to avoid a downward spiral of further conflicts and displacement. The debate has sparked off a number of initiatives involving both humanitarian and development actors. Some recent initiatives include the Brookings process which was launched by UNHCR and the World Bank in 1999, the 4R initiative¹⁰³ and the working group on transition issues involving the UN Development Group and the Executive Committee on Humanitarian Assistance. The creation of a Peacebuilding Commission by the UN General Assembly within the framework of UN reform is the latest attempt at approaching post-conflict situations in a unified manner.

The situation on the ground, however, is still alarming. While the large majority of the world’s IDPs live in post-conflict situations, durable solutions that would end their plight remain a largely unmet challenge. Millions are trapped in internal displacement for years, even decades, because the political situation remains blocked. Although peace agreements have put a formal end to the conflicts that led to displacement in the first place, underlying and persisting tensions continue to jeopardise the return of IDPs in several countries. In some cases, a main cause for displacement in post-conflict situations is widespread poverty and lack of infra-

structure in home areas which needs to be addressed before IDPs can return and reintegrate.

In many situations, IDPs have to resettle and reintegrate without any assistance or monitoring. Often they join the rural-urban migration flows and blend with the slum population in nearby cities. Consequently, very little is known about their situation. In countries where national and international actors provide some post-conflict assistance, it is increasingly recognised that IDPs remain a particularly vulnerable group compared to the rest of the population even when they have been able to return or integrate into local communities. They rarely benefit from the same level of reintegration assistance that is provided for returning refugees and frequently encounter problems related to property restitution. In general, IDPs in post-conflict situations continue to live in poverty with scarce access to food, health, education and other social services. Often, security risks persist even years after the conflict has formally ended¹⁰⁴.

A study on internally displaced populations in the Balkans, one of the few existing in-depth reports on the situation of IDPs in post-conflict situations, concludes that while the health and education status of IDPs in displacement-affected countries appear to be comparable to the rest of the population, their situations differs for the worse in many other aspects. IDPs and returnees are in general poorer, and face much higher unemployment rates as well as problems related to housing and land than the rest of the population. Also, in several of the Balkan countries, the displaced are far more reliant than local populations on public assistance, whether from international agencies, host government public assistance programmes, or both¹⁰⁵.

National authorities have the prime responsibility for facilitating access to durable solutions for IDPs. This means that IDPs should have options to voluntarily and safely return or resettle as well as the possibility of re-establishing themselves, regaining their livelihoods and reintegrating into society. Weakened by years of war and destruction, state structures rarely have the capacity in post-conflict situations to ensure a successful return and reintegration process of internally displaced without external assistance. International

actors, including financial institutions, UN and donor development agencies, NGOs and private sector initiatives, thus play an important role both financially and in bringing the skills necessary to support the authorities' efforts toward recovery.

IDPs and refugees have not traditionally been the focus of development programmes, but have rather been incorporated into broader programmes targeting "vulnerable populations". Although there is growing awareness of the need for development agents to more specifically address the particular needs and vulnerabilities facing IDPs, a lot remains to be done in order to mainstream the human rights of IDPs into post-conflict assistance strategies. For example, while the protection and assistance needs of IDPs are supposed to be adequately reflected in the UN's development strategy documents such as Common Country Assessments (CCAs), UN Development Assistance Frameworks (UNDAFs) and Poverty Reduction Strategy Papers (PRSPs), this still is often not the case. A study undertaken by UNHCR concluded that there is no systematic approach to include population displacement in PRSPs or other strategies for poverty reduction¹⁰⁶. In fact, only half of the existing UN development strategy plans in countries affected by internal displacement make special reference to IDPs. In some cases, local civil society groups have been instrumental in promoting inclusion of IDP issues in national development plans. The Serbian NGO Group 484, for example, actively campaigned and worked closely with national authorities for inclusion of refugee and IDP issues in the country's PRSP¹⁰⁷.

Donors have attributed increasing importance to providing timely and substantive support to post-conflict

recovery and peace building. However, a main problem and explanation for why IDPs remain particularly vulnerable in post-conflict situations continues to be lack of funding. A successful post-conflict strategy targeting IDPs requires political will and effective investment of the state and international actors. International donor support for IDP programmes tends to drop once the emergency phase is over, or dwindles the longer a protracted situation remains unresolved. In Europe, the level of external humanitarian assistance targeted at displaced populations has dropped significantly since the late 1990s. In Bosnia and Herzegovina, for example, resources for IDPs dried up at a time when the security situation had finally improved enough for IDPs to be confident enough to return to their homes. The premature termination of IDP-specific programmes in post-conflict situations undermines the sustainability of return movements and the process of finding other durable solutions, as can be seen in countries such as Bosnia and Herzegovina or Angola.

While no formal benchmarks exist as to what a durable solution to internal displacement should entail, it is clear that IDPs in post-conflict situations need greater international commitment and support that goes beyond assistance to food, medicine and shelter. As has been argued by advocates for an improved response to internal displacement, post-conflict reconstruction must include not only the rebuilding of physical infrastructure but also the restoration of a framework of governance providing physical security and rule of law when IDPs choose to return and reintegrate. This remains a major challenge for both the affected national governments and the international community.



Two years after the end of the civil war in Liberia, many displaced families were still living in a former office block damaged by the fighting in the capital Monrovia. (Photo: Sven Torfinn)

Regional Overviews 5



Tents cover a hillside in a camp for IDPs in Tchete, Democratic Republic of Congo, housing some 20,000 people. (Photo: Sven Torfinn)

Africa

The magnitude of internal displacement in Africa remains enormous: some 12 million of the world's 23.5 million IDPs were internally displaced there at the end of 2005. While this represented a slight decrease on 2004, it still dwarfed the number of refugees from Africa, estimated at approximately 3.2 million (2004)¹⁰⁸. At the same time various peace processes across the continent yielded positive results, allowing for the return of more than three million African IDPs – substantially more than in any other region of the world. Yet sustainable return and reintegration is hampered by numerous constraints, including in many cases continuing protection concerns and grim living conditions in areas of return.

The worst affected countries, as in the previous year, were Sudan, the DRC and Uganda which, together, accounted for over nine million IDPs. All three countries saw continuing internal displacement throughout 2005, as a result of conflict characterised by egregious human rights abuses against civilians. But while displacement continued in Sudan's Darfur region, some 500,000 IDPs from the south of the country returned home during the year. In the DRC too, displacement was concurrent with return on a massive scale – around 1.6 million IDPs – although the majority received no support.

Large-scale return was also seen in Liberia, where over 260,000 IDPs were officially returned to their areas of origin before the end of 2005. And in Burundi, ongoing return was encouraged by overall improvement in the political and security situation, although this was offset to a certain extent by continuing violence in one specific province.

New crises also emerged in the course of the year: in Zimbabwe, some 570,000 people were forcibly evicted from their homes in a government "clean up" operation in urban areas, and in Togo, state-sponsored violence following April's disputed presidential elections forced thousands of people to flee.

Elusive peace, perennial displacement

Although the number of African countries engaged in major conflict has steadily decreased since the late 1990s – down to three in 2005 according to the UN Secretary-General¹⁰⁹ – the persistence of civil strife has to varying degrees perpetuated situations of internal displacement, at the very least by inhibiting return.

In 2005 the Darfur conflict in western Sudan deteriorated yet further and hit an unprecedented low with the direct targeting of an IDP camp in September – notwithstanding ongoing peace talks in the Nigerian capital, Abuja. The number of IDPs in Darfur had increased to around two million by the end of 2005. The separate conflict in the south of Sudan officially came to an end in January 2005 when the government and the southern-based Sudan People's Liberation Movement/Army signed a Comprehensive Peace Agreement, leading to the establishment of a Government of National Unity in September. The agreement paved the way for the return of those uprooted from the south; by the end of 2005 some 500,000 of the four million IDPs had returned spontaneously along with insignificant numbers of refugees. The lack of infrastructure and basic

services in the devastated south of the country continues to be a major impediment to sustainable return and reintegration.

In northern Uganda, peace talks aimed at ending the two decade-long conflict between the government and rebels of the Lord's Resistance Army (LRA) collapsed in February 2005, resulting in a resumption of rebel attacks on IDPs, involving killings, maiming, rapes and looting. The intervention of the International Criminal Court, which in October issued international arrest warrants for the rebel leaders, was met with concern by many observers who fear that the LRA may now be less likely than ever to surrender peacefully. The number of people internally displaced in Uganda is estimated at two million. In the DRC, renewed clashes between armed groups and attacks against civilians caused hundreds of thousands of people to flee their homes in the east of the country throughout the year, marring the progress of IDP return that had been taking place since the establishment of a transitional power-sharing government in June 2003 and following the strengthening of international peacekeeping operations. Some

Internally displaced Ugandans receive beans, maize and cabbage seeds from the Ugandan Red Cross at Aromo camp near Lira in northern Uganda. (Photo: Reuters/Hudson Apunyo, courtesy www.alertnet.org)



1.7 million people remained displaced in the DRC at the end of 2005. While Côte d'Ivoire's faltering peace process hit further obstacles with the postponement of elections scheduled for October 2005 and tensions over the transition period, the country's estimated 500,000 IDPs faced an increasingly precarious future. Amid fears of a return to all-out conflict, humanitarian agencies in the country prepared contingency plans for the "worst case scenario" entailing massive displacement and refugee flows into neighbouring countries – but existing IDPs remained generally neglected and in an extremely vulnerable situation. And in Ethiopia and Eritrea, heightened tensions along the disputed border between the two countries also raised fears of renewed internal displacement on both sides, exacerbated by ongoing political turmoil following disputed May 2005 elections in Ethiopia.

Various African countries continued to experience "frozen" conflicts in 2005, either where intermittent clashes caused small-scale, temporary displacement (such as in the Republic of Congo and the Central African Republic) or where chronic insecurity and tension inhibited IDP return and reintegration (as in Somalia and Guinea).

Despite the generally bleak statistics, there were some positive developments in 2005. In Liberia – where peaceful elections in October brought to power Africa's first female president – more than 260,000 IDPs were officially returned to their areas of origin by the end of the year, leaving some 50,000 registered IDPs in formal camps. President Ellen Johnson-Sirleaf now faces the daunting task of rehabilitating a country thoroughly devastated by years of conflict and misman-

agement, and creating the conditions for sustainable return. In Nigeria, most of the scores of thousands displaced by communal violence in central Plateau state in 2004 had either returned to their homes or resettled elsewhere by mid-2005. Consolidation of post-conflict transitions in both Angola and Senegal allowed for the continuing return of IDPs to their areas of origin. And in Burundi, overall improvements in the political and security situation continued to encourage IDP return, with the exception of Bujumbura Rural Province where more people were displaced as a result of one rebel group's refusal to make peace with the government.

Causes and patterns of displacement

Numerous factors lie behind internal displacement in Africa, not least conflict arising from a combination of endemic poverty, inequitable distribution of resources, corruption and lack of good governance. Rebel groups as well as manipulative politicians often have vested interests in maintaining conflict and a non-functioning state for their own political and economic gains. The forced displacement of civilians has been a strategy used by both government and rebel forces in various countries to achieve different military and economic ends. During Angola's 27-year civil war that ended in 2002, civilians were forcibly displaced by UNITA rebels in order to procure a workforce and in turn by government forces in order to isolate UNITA. In Burundi, the Tutsi-dominated government in 1998-99 pursued a policy of *regroupement* that relocated the largely Hutu population into camps guarded by government forces, purportedly for protection from attacking rebel

groups. Similarly the Ugandan government in 1996 ordered large numbers of Acholi people from northern districts into camps as part of its strategy to separate them from rebels operating in that area. These de facto internment policies have in many cases exacerbated the protection and assistance needs of the IDPs while depriving them of their freedom. And in 2005, the Zimbabwean government's "clean up" operation in urban areas – allegedly done in the interests of public order – forcibly evicted hundreds of thousands of people from their homes.

Competition for access to scarce land and water resources among pastoralist and farming communities has also triggered conflict, leading in turn to significant internal displacement in more than half of the 24 IDP situations in Africa currently monitored by the IDMC. Severe drought conditions in the Horn of Africa in recent years have exacerbated internal displacement throughout the region. Internal displacement in some African countries has, to varying degrees, been linked with struggles for control over oil wealth – for example in Nigeria, Sudan and the Republic of Congo.

Many of Africa's conflicts causing internal displacement, while intra-state, have a regional dimension and are sustained by external factors. These include cross-border support for armed groups or rebel movements active in resource-rich areas. Liberia's civil war, that started in 1989 and eventually embroiled neighbouring Sierra Leone, Guinea and Côte d'Ivoire, was fuelled by competition for diamonds, timber and other raw materials. The rebel Revolutionary United Front in Sierra Leone was armed and supported by Liberia in return for diamonds. In the DRC, one factor that started – and sustained – the civil war that broke out in 1998 was plunder of the country's rich natural resources. The war was fought not only by various internal factions, but also directly involved, at one time or another, nine other countries in the region. Another common factor prolonging these and many other wars in Africa – and thereby exacerbating situations of internal displacement – is the exceedingly high availability of small arms and light weapons.

While few conflicts have been essentially over ethnicity or religion, these have in varying degrees been factors in both conflict and displacement. According to IDMC statistics, ethnic conflict (along with separatism and repression) has been a significant cause of displacement in about one third of the 24 African IDP situations currently monitored, while religion hardly plays a role in Africa as root causes of displacement. Yet there are numerous examples where ethnic or religious divisions have been manipulated by politicians who seek to benefit from social division and ultimately to justify their own political or economic empowerment. Once created, the violence often takes on its own momentum, polarising communities and causing sometimes massive displacement and human rights violations. Sudan's 21-year civil war between an Arab government in the north and the largely black African south – in which some two million people were killed in complex tribal warfare – was exacerbated by competition for access to oil revenues. In Nigeria, while ethno-religious conflict is endemic and causes periodic death and displacement, many people believe that conflicts are in fact created and fanned by scheming politicians, particularly elites of the former military regime, relying on the huge pools of destitute and frustrated youths to foment violence. What is essentially a struggle for power and access to scarce resources often takes on

the characteristics of ethnic or religious conflict. Similarly in Côte d'Ivoire, long-standing tensions between indigenous communities and settlers essentially over land have been manipulated by successive politicians into a xenophobic form of nationalism in order to restrict the eligibility of certain individuals or groups for political power.



Young inhabitants of an IDP camp in Burundi where more than one-third of all displaced households are headed by women and children (mostly orphans). (Photo: Greta Zeender/IDMC)

Protection and assistance concerns

Internally displaced people in Africa have often been particularly vulnerable to direct physical attacks

or threats, sexual assault and forced labour. Human rights abuses including torture, mutilation and rape – inflicted on civilians by armed combatants – have been documented in recent years in nearly every African country monitored by the IDMC. 2005 was no exception. Abuses were often most flagrant where humanitarian access was most restricted. In Darfur,

where insecurity and attacks on aid workers seriously limit access to the two million IDPs, the government of Sudan and its allied Janjaweed militia have been guilty of crimes against humanity in their widespread and systematic abuses against civilians. Similarly in northern Uganda, attacks in 2005 against both IDPs and directly against humanitarian aid workers made the delivery of humanitarian assistance extremely difficult. In Somalia, where the transitional government finally relocated to the country from neighbouring Kenya in June 2005, rampant insecurity in south and central Somalia continued to restrict humanitarian access to the majority of the country's 370,000-400,000 IDPs who are exposed to both physical violence and appalling living conditions. And in Zimbabwe, where the government's forced eviction campaign was heavily criticised for causing gross human rights violations and the displacement of hundreds of thousands of people, President Robert Mugabe has repeatedly hampered the delivery of international humanitarian assistance, criticising the UN response as inappropriate and misguided.

Yet access is not the only problem; in some situations human rights abuses against IDPs have taken place virtually under the watch of both peacekeeping troops and humanitarian agencies, indicating at times a serious lack of protection capacity. In Côte d'Ivoire, a series of inter-ethnic clashes that killed some 90 people and forced more than 10,000 to flee their homes near the western town of Duékoué in May and June took place less than one kilometre from a UN checkpoint. And in Liberia, while the return process was going ahead at full speed, some NGOs reported that the protection concerns in the IDP camps were becoming even worse.

Obstacles to return

Even where IDPs are returned to their areas of origin under an organised programme, serious problems in the areas of return have severely hampered the success of such programmes. While the UN in Liberia attributed the increasing IDP returns and camp closures in 2005 in part to improved conditions in areas of return, NGOs have disputed this and maintain that a dire lack of services as well as continuing protection concerns have resulted in IDPs returning to the camps. The four million Angolan IDPs who have returned to their home areas since the end of the civil war in 2002 have faced daunting obstacles including a dire lack of infrastructure and basic services. In Nigeria too, when displacement occurs, the immediate humanitarian needs of IDPs are often adequately addressed but their longer term needs – principally assistance for return and reintegration – are given scant attention.

Landmines are a major obstacle to IDP return in many countries, with sub-Saharan Africa the most heavily mined region in the world. Angola is the worst affected country, with tens of thousands of victims of landmine blasts. Civil conflicts in many other African countries have left a legacy of landmines that continues to hamper social and economic development; those affected include Burundi, the DRC, Eritrea, Ethiopia, Guinea-Bissau, Mozambique, Senegal, Sudan and Uganda. Although 48 African states have signed up to the 1997 Ottawa Convention that calls for the banning of the use of anti-personnel mines and their destruction, many will be unable to fulfil their commitments without much more international support.

Constrained response

Despite, or because of, the fact that internal displacement in Africa presents a humanitarian challenge of enormous proportions, the response has on the whole been entirely inadequate. The responses in numerous countries share some common constraints: weak or non-existent national response capacities; endemic insecurity resulting in limited humanitarian access (see *protection concerns*); an acute lack of funding for humanitarian programmes; and in many cases weak capacity and coordination at the international level, particularly between peacekeeping missions and humanitarian operations.

A common problem in many African countries – including those with democratically elected governments – continues to be the lack of good governance, transparency and accountability. Therefore, at the national level, there has in the majority of cases been a lack of recognition by governments of their obligations to provide IDPs with the necessary protection and assistance. Only four African governments (Angola, Burundi, Liberia and Uganda) have adopted an IDP policy or IDP legislation that is largely in line with the UN Guiding Principles and of those, few if any have been properly implemented. The Angolan government, for example – despite being one of the first state authorities to adopt and use the UN Guiding Principles – fell far short of expectations in its level of assistance to the country's massive internally displaced populations, both during displacement and for return and reintegration, despite its huge mineral wealth. A national IDP policy adopted by the Ugandan government in 2005 has yet to be implemented due to a lack both of resources and of genuine political will. And in Nigeria, where a national IDP policy has been in the pipeline since 2003, one reason for delay in publication has been political wrangling over which state body will assume lead responsibility for IDP response.

In October 2005 key governments of the Great Lakes region – including Burundi, the DRC, Rwanda, Uganda, Tanzania, Kenya and the Central African Republic – drafted a Protocol on the Protection and Assistance to IDPs, based on the Guiding Principles and envisaging the enactment of appropriate legislation by member states. The Protocol is expected to be adopted in the second half of 2006.

In the vast majority of African countries with internally displaced populations, IDPs themselves have had a negligible influence on the planning and implementation of humanitarian response – principally because their opinions have rarely been sought, or at least not in a representative way. There are very few examples in Africa of organised civil society bringing international attention to situations of internal displacement in their countries (see *thematic overview on civil society involvement in IDP situations* above).

The humanitarian response to IDPs across Africa has been hampered not only by the limited access to internally displaced populations and in many cases the scarcity of information on their situation (for example in Algeria, Guinea, Republic of Congo and Zimbabwe), but also by an overall dearth of donor funding. In 2005, the UN Emergency Relief Coordinator once again issued strong appeals to the donor community to focus more attention on humanitarian crises across Africa, warning that without a speedy response millions of lives would be lost. Donor response to critical humanitarian needs was often inadequate and unpredictable, he said. While overall funding in 2005 increased from the particularly poor levels in 2004, much of it came late in the year and some emergencies and sectors remained as forgotten as ever. Most sectors (water/sanitation, shelter and non-food items, protection, security, mine action, health, education, and coordination and support services) received less than 30 per cent of requirements in 2005. Sudan, Somalia, Côte d'Ivoire, Burundi and Central African Republic – most with sizeable IDP populations and all with serious protection concerns – received less than 50 per cent of funding requirements for the year¹¹⁰. In other cases, such as Guinea, donors tended to prioritise refugee programmes, resulting in a significant disparity between relief and rehabilitation assistance for refugees and similar assistance for IDPs and other vulnerable groups.

The impact of recent UN peacekeeping operations on IDP protection and assistance has been mixed and standards have varied widely. Of the 16 UN peacekeeping operations deployed worldwide at the end of 2005, half were in Africa. While the UN Mission in Sierra Leone was preparing for its departure at the end of the year after successfully contributing to the restoration of peace and security in the country, a large

new peacekeeping mission was deployed to Sudan in March. But as the number of operations has surged in recent years so has the complexity of the tasks they face, leaving them in numerous situations under-resourced and overstretched.

In 2005 UN peacekeeping missions in Liberia, Côte d'Ivoire, Burundi, the DRC, Ethiopia/Eritrea and Sudan, among others, were variously mandated to monitor ceasefire agreements, assist in disarming combatants, support public order and protect civilians. While all these missions did, in greatly varying degrees, contribute towards IDP protection, all of them faced serious obstacles and shortcomings. In all cases – particularly in the vast countries of the DRC and Sudan – peacekeepers did not have a presence in remote rural areas where human rights abuses were being committed. The integration of peacekeeping and humanitarian coordination within a UN mission raised particularly thorny problems in Liberia. There, NGOs voiced concerns that humanitarian coordination, particularly of the return process, had been politically driven by the UN Mission in Liberia, whose desire for a “success story” ahead of October 2005 elections was the main reason for what they see as a rushed and poorly planned return and reintegration process. Concerns over the subjugation of humanitarian imperatives to political ones and the consequent loss of impartiality in the context of integrated missions have similarly been raised (most often by NGOs) in Sierra Leone, Côte d'Ivoire, Burundi and the DRC. And in some cases UN peacekeepers have directly aggravated the plight of IDPs, with evidence of widespread sexual misconduct by troops in both West and Central African countries¹¹¹.

Regionally, African organisations have become increasingly involved in conflict resolution on both a political and a military level, again with a mixed impact on IDP situations. The African Union (AU) has become a significant factor in peacekeeping in Africa, with plans to substantially boost its 15,000-strong Standby Force in 2006. This is supported by sub-regional organisations such as the Economic Community of Central African States (ECCAS) and the Economic Community of West African States (ECOWAS). But as seen in its military intervention in Darfur – which has been commended for its positive impact on IDP protection – the AU remains largely under-equipped and under-staffed for the enormity of the task facing it¹¹². The AU is also actively involved in the facilitation of peace talks and political dialogue in various African conflicts, including (in 2005) Darfur and Côte d'Ivoire. Yet in Zimbabwe, the AU was taken to task in late 2005 by both human rights bodies and the UN Emergency Relief Coordinator for failing to speak out against the government's controversial “restore order” campaign that left hundreds of thousands of people homeless.

Americas

The overwhelming majority of Latin America's 3.8 million internally displaced people are in Colombia, where continued violence forced another 250,000 people to flee their homes during the course of 2005. In few other countries has the number of internally displaced people grown so regularly and at such a pace over the past years as in Colombia. With a total of up to 3.7 million IDPs, Colombia continued to face the world's second largest internal displacement crisis. Conflicts in other countries of the region have largely abated in the aftermath of the Cold War, and most of the displaced have been able to return to their places of origin. However, rarely have the underlying root causes of the conflicts been addressed. And in Guatemala, Peru and Mexico large numbers of internally displaced people, many of them belonging to indigenous communities, still wait for durable solutions that would allow them to regain their properties or receive compensation and ensure the protection of their rights and cultures.

Internal displacement in Latin America has been caused by armed conflicts that are often rooted in extreme disparities in the distribution of land and wealth. In most cases, these conflicts have pitted left-wing guerrillas rooted in landless indigenous communities against the national armies of right-wing authoritarian regimes dominated by the land-owning elites of European descent.

During 2005, little progress was made in addressing the plight of the growing number of IDPs in Colombia and of those still displaced in Guatemala, Peru and Mexico. The Colombian government has declared IDP return a priority, but fighting between right-wing paramilitary groups and leftist rebels as well as continued direct attacks against civilians caused new displacement and made return virtually impossible. A new amnesty law, adopted in June 2005 by Congress, is widely seen as a means to grant impunity to paramilitary groups, which have been the main perpetrators of human rights abuses and forced displacement, and to legalise unlawfully acquired assets, such as land abandoned by IDPs. The IDP situations in Latin America continued to receive little attention by the international community. Colombia is the only country in the region where the displaced are recognised and assisted through specific programmes by the United Nations.

Background and causes of displacement

The main historical cause of conflict and forced displacement in Latin America is widely held to be extreme wealth and land concentration and a corresponding high number of landless and dispossessed people, mainly rural indigenous communities who in some countries make up the majority of the population. These inequalities have fuelled violent popular uprisings which have been crushed by national armies and paramilitary groups safeguarding the interests of large landowners and industrialists of European descent as well as foreign investors. The violence and ensuing massive displacement peaked in the 1980s and faded in the first half of the 1990s. The worst-hit countries were Guatemala, El Salvador, Nicaragua, Honduras and Peru where more than three million people had to flee their homes to seek protection, an estimated one million as refugees and another two million as IDPs. The Cold War ran parallel to and intensified the civil wars in Latin America, but did not create them. The extremely unequal distribution of wealth and resources led as early as the 19th century to repeated popular uprisings and revolutions mostly by rebel groups

based in landless or dispossessed rural indigenous communities against the land-owning elites. During the Cold War, many of these rebellions were inspired by and received some support from the Soviet bloc, but without matching US support to the authorities. In the fight against communism and in defence of its national interests, the US government provided massive political, military and economic support to right-wing authoritarian regimes defending the national oligarchies and their strategic alliances with US-based multi-national companies throughout the 20th century. The end of the Cold War marked the beginning of the end for most of the armed rebellions. However, the peace agreements or truth and reconciliation commissions established in Guatemala, Mexico, El Salvador and Peru in the 1990s did not address or resolve the structural injustices that had caused the violence and the massive displacements in the first place. The region has some of the highest poverty rates in the world, massive unemployment and crime and homicide rates that have reached unprecedented proportions in countries such as El Salvador, Honduras, Guatemala,



Nukak Maku Indian boys in an IDP camp near San Jose del Guaviare, Colombia. Indigenous people are disproportionately affected by forced displacement in Colombia. (Photo: Reuters/Eliana Aponte, courtesy www.alertnet.org)

and Peru. Problems related to land issues, which have been at the core of most of the armed struggles in the region, remain also largely unresolved. These structural political, social and economic problems have for the most part overshadowed the governments' pledges made in peace agreements or truth and reconciliation commissions regarding durable solutions for internally displaced people and returning refugees. Colombia apart, the result is that an estimated 300,000 remaining IDPs are denied the right to integrate locally or to reintegrate in areas of origin in Guatemala, Peru and Mexico, aggravating the potential for renewed conflict and displacement.

Forced displacement of civilians has increasingly ceased to be a by-product of fighting between armed groups to become a military objective serving political and economic purposes. In Colombia the paramilitary groups have forced hundreds of thousands of civilians to flee their homes to separate them from the guerrillas and expand the groups' political, economic and territorial control. The provinces worst affected by this kind of displacement are also the ones richest in natural resources such as oil, coal and precious metals or fertile land of particular interest to the government and multinational companies.

This has been further aggravated by drug trafficking which has permeated and disfigured important sectors of the society, including the Congress, where paramilitaries claim to control around 35 per cent of the representatives. While the guerrillas benefit from drug production by imposing taxes on farmers in areas under their control, paramilitary groups finance their operations to a large extent with money coming from direct involvement in drug trafficking.

Armed groups often displace or kill civilians they suspect of supporting the "enemy". This phenomenon is particularly common when they gain control over an area previously occupied by an opponent, with ensuing threats, assassinations and displacements as a result. The US-supported "Plan Colombia" with the objective of eradicating the drug trade has further complicated displacement patterns. An estimated 200,000 farmers have had to flee their homes since the inception of the plan in 1999 as a result of indiscriminate aerial chemical fumigation of illicit crops. They are not officially recognised and registered as IDPs, as the government says they could simply start cultivating legal crops again and are therefore not forced to flee. However, intimidation by armed groups and the health risks and environmental damage caused by fumigations often leaves the affected communities no choice but to leave.



Displaced Embera-Catíos Indian girl in Cazuca near Bogotá, Colombia. (Photo: Reuters/Eliana Aponte, courtesy www.alertnet.org)

Human rights and living conditions

The human rights situation in Latin America remains a cause of serious concern. Landless indigenous populations have been forced to flee brutal political violence, as they have often been perceived by governments as supporters of insurgencies. Stigmatised as subversive, these populations have been the target of violent counter-insurgency reprisals by military and paramilitary groups. In Guatemala, the scorched-earth offensive in the early 1980s, against the Mayan population suspected of being linked to the guerrilla movement, was described as “genocide” by the Commission for Historical Clarification in 1999. Over 200,000 people were killed or disappeared and others were forcibly relocated into military camps, or coerced into joining counter-insurgency defence patrols in the 1980s. Similarly, in Peru the displaced were obliged to join defence patrols or face prison sentences for suspected ties with the guerrilla group Sendero Luminoso (Shining Path). The indigenous Asháninkas were massacred or held captive in camps, enslaved and forcibly recruited by the Shining Path. Since Alvaro Uribe Velez took office as president of Colombia in August 2002, he has pursued a policy of “democratic security”, which aims at cracking down on guerrilla groups by involving civilians in counter-insurgency activities, arming peasant soldiers and setting up networks of informants. These “security” measures ignore core principles of interna-

tional humanitarian law by blurring the distinction between civilians and combatants through the militarisation of society. The government says it has reduced the number of new displacements from 160,000 in 2004 to 106,000 in 2005 as a result of this strategy, but this view is strongly contested by NGOs. According to CODHES, one of the most authoritative NGOs, more than 250,000 people have been forced to flee their homes in Colombia in the first nine months of the year alone. Moreover, massacres, attacks and intimidation by armed groups continued to be reported throughout the year, in many cases by army-backed paramilitary groups that are supposedly in the final stage of demobilisation.

In response to the lack of government protection, and in order to resist being drawn into the conflicts, IDPs in the Americas have organised into so-called resistance or peace communities over the past decades. In Guatemala, for example, some 50,000 displaced people formed a group called the Communities of People in Resistance. There, as in Colombia, the peace communities and indigenous groups requesting armed groups to respect their neutrality have not been spared from continued attacks, the killing of their leaders, food blockades and restrictions on freedom of movement.

Attacks against human rights defenders in the region continued throughout 2005. In Colombia, leaders of IDP organisations and indigenous communities, human rights advocates, social workers, teachers, trade unionists and church leaders were the targets of attacks, forcing people to flee from their homes. Moreover, since the breakdown of dialogue between the government and the FARC in 2002, violent actions against civilians have multiplied, including forced disappearances, arbitrary detentions and kidnappings.

Many IDPs are denied civil and socio-economic rights. Fearing further attacks or the stigma of being displaced, many IDPs in Latin America do not register with the authorities and prefer to remain anonymous. Without official registration and proper identity documents, IDPs face difficulties in accessing government assistance, employment, health care, and education. Their civil and political rights, such as the right to vote, are also restricted and their restitution and property rights undermined.

The vast majority of IDPs in Latin America are dispersed rather than living in organised camps. People of indigenous origin have often fled to isolated regions with little food and poor or non-existent health services. Many IDPs in Guatemala, Colombia and Peru have been forced to find minimal shelter in urban slums with other impoverished populations. There, they lack most basic services and often face intense discrimination. People of African descent, indigenous people and non-Spanish speakers in particular are often considered unwelcome neighbours by resident populations and the authorities. In Colombia's big-city slums, IDPs continue to be victims of "social cleansing" by paramilitary groups. Increasingly across cities, large sections of the population are being drawn into gang warfare which replicates war allegiances and divisions at the national level. This has led to rising, but largely undocumented intra-urban displacements in Colombia, Guatemala and Haiti during the year.

The administration of justice is still weak in the region and internal displacement has often been carried out with near impunity, in many cases with the acquiescence and collaboration of law enforcement personnel and landowning elites. While the Uribe administration in Colombia has demobilised 14,000 paramilitaries within the framework of the controversial Peace and Justice Law endorsed by the Congress in June 2005, this may leave crimes against humanity and violations of international humanitarian law unpunished. The paramilitary groups control between four and six million hectares of land, much of it grabbed from people

they forcibly displaced. Furthermore many of those signing up for demobilisation never formed part of the paramilitary ranks and the whole process leaves the political, economic and social structures controlled by the paramilitaries intact, according to national and international human rights organisations.

Durable solutions

Landless farmers and indigenous communities have actively struggled for their socio-economic rights, including respect for their cultures and rights to their ancestral lands. Some guerrilla groups have defended indigenous interests, with questionable results. In Guatemala, for example, indigenous issues were high on the agenda of the 1996 Peace Accords signed between the government and the Guatemala National Revolutionary Unit (URNG), the rebels' umbrella organisation. But while the URNG evolved into a conventional political party by 1998, the restitution rights of dispersed IDPs are still not recognised and indigenous people remain largely excluded, suffering from extreme poverty, racial discrimination and lack of access to land.

In Peru, the Maoist Shining Path rebels claimed to fight for land reform and equality, but turned into the principal perpetrator of abuses against civilians and indigenous people, who were also targeted by the armed forces suspecting them of supporting the rebels. Many internally displaced people in Latin America are still struggling to find durable solutions to their plight. The Guatemalan 1996 Peace Agreements included provisions on return and reintegration, but IDPs who had taken refuge in cities or who were dispersed across rural areas rather than organised, were not included in return programmes. Similarly in Peru, most IDPs have returned by their own means because the government refused to assist families who did not permanently settle in areas of return. This was the case for many indigenous people who traditionally migrate to urban centres in search of seasonal work. As a result, it is unclear how many IDPs have returned or reintegrated elsewhere and how many still require assistance and reparation. In Mexico, thousands have returned, but many still live under threat of paramilitaries and have not been compensated for lost land and property. Durable solutions for displaced Colombians will be hard to achieve as long as the conflict is ongoing. The return of IDPs has been the priority of the current Colombian administration, sometimes regardless of the presence of armed groups and despite the fact that the conditions which caused displacements remained unchanged. Many opted for return because of the lack of assistance available in areas of refuge.

The demands of the displaced and other landless and destitute people in the region to have their land rights legalised, regain their properties, and to have better access to health and education in order to rebuild sustainable livelihoods, remain a challenge to their governments.

National, regional and international responses

Governments in the Americas have increasingly acknowledged the problem of internal displacement and set up national bodies to deal with the issue. However, they have often failed to allocate sufficient resources to these institutions to fulfil their mandate or to take legal measures to ensure effective implementation. In Colombia, national legislation on IDPs is more advanced than anywhere else in the world without having resolved a large-scale and largely neglected humanitarian crisis. Moreover, various presidential decrees have reportedly undermined or even contradicted the intentions in the IDP legislation. Pointing to these discrepancies the Colombian Constitutional Court issued a ruling in 2004, declaring the lack of adequate protection and assistance to IDPs unconstitutional and urging the government to design a strategy guaranteeing an effective response to the maximum of available resources. The Colombian government has seemingly taken the ruling seriously by establishing and reinforcing institutions meant to respond to the IDPs' needs for health care, education, livelihood and property. It also allocated more than \$2 billion at the end of 2005 for long-term IDP programmes in response to the Constitutional Court's ruling. However, the government's programmes have been criticised again by the Colombian Constitutional Court in its follow-up to the ruling as well as by national and international human rights organisations for being weak on preventing displacement and protecting the IDPs in an integral manner and for neglecting the post-emergency phase and long-term solutions like reintegration. The government's version of its response to protection and assistance needs of the IDPs contrasts sharply with the version presented by human rights defenders and IDP organisations, reflecting a deeply divided and fragmented society.

In Peru, a law on IDPs adopted in 2004, defining their protection, assistance and reintegration rights has been poorly honoured by the government. Many of the remaining 60,000 IDPs have not received any compensation as stipulated in the law which was a follow-up to the recommendations included in the 2003 report of the Truth and Reconciliation Commission.

The recommendations of the Representative of the UN Secretary-General on Internally Displaced Persons following his visits to Colombia and Mexico in 1999 and 2002 respectively have not been fully implemented. In Mexico, for example, legislation on internal displacement has not yet been adopted, although a law was proposed in 1998.

Similarly, many of the provisions on IDP return and reintegration contained in peace agreements and other initiatives have yet to be fully implemented. In Guatemala, for example, several thousand dispersed IDPs were still waiting to go home as key elements of the 1996 peace agreements covering resettlement, compensation and land allocation had only partially been put into practice. Despite the lack of progress in implementing the peace deal, the UN commission mandated to monitor compliance with the accords (MINUGUA) terminated its work in 2004. In the case of Peru, the government provided hardly any assistance and protection to IDPs at the height of the conflict. It was not until 1991 that a commission was created to design a response for the displaced and in 1993 it launched the Project in Support of Repopulation (PAR) to facilitate the return of IDPs.

In a remarkable display of resilience in the face of war and human rights violations, the displaced have organised into self-help and advocacy groups more than anywhere else in the world. Supported by a vast solidarity network of church associations and human rights organisations, IDPs have been able to articulate their demands, bring their governments to the negotiating table, and draw international attention to their plight. Among the organisations that have been most successful in assisting displaced people to recover identification papers and reclaim their land and property are the National Council of the Displaced in Guatemala (CONDEG) and the Reconstruction and Develop-

ment Association of the Andean Communities in Peru, as well as a number of influential NGOs in Colombia. National IDP coordination bodies have also been formed. However, the work of these organisations has been seriously undermined by the assassination of some of their members, intimidation and under-funding. Government officials in Colombia and Peru have at times accused NGOs working with IDPs of links with “terrorist” groups, thus further endangering their safety. Churches have had a central role in Latin America, sometimes the only ones to cover the emergency needs of the displaced at the height of conflict. They have been important actors with regard to reconciliation and reconstruction during return processes and monitoring displacement and human rights, although with important exceptions, particularly in Colombia.

Regionally, there are various noteworthy initiatives aimed at tackling the problem of internal displacement. The Organisation of American States (OAS) was the first regional body to endorse the UN Guiding Principles and apply them to its work. In 2004, the General Assembly adopted a separate resolution on IDPs for the first time in the organisation’s history. A similar resolution was adopted in 2005 and another one is being prepared for the General Assembly due to take place in June 2006. The 1989 International Conference on Central American Refugees (CIREFCA), the UN multi-agency Development Programme for Displaced Persons, Refugees and Returnees in Central America (PRODERE) as well as the San Jose Declaration on Refugees and Displaced Persons of 1994 all focused on the protection, assistance and reintegration of uprooted populations in the region. In addition, the Inter-American Commission on Human Rights (IACHR) of the OAS appointed a Special Rapporteur for IDPs in 1996 and established the innovative Permanent Consultation on Internal Displacement in the Americas in 1992. The commission is an informal structure to enhance the regional response mechanisms for IDPs and played a key role in preparing the inclusion of the Guiding Principles in the work of the OAS. Although the seriously under-funded Commission has made commendable efforts to monitor the compliance of states with their obligations towards IDPs in many countries, it has failed to condemn the Colombian army-backed paramilitaries for having assassinated around 2,500 union

leaders, human rights workers and farmers since the ceasefire was declared in December 2002. In 2004, the first regional seminar on internal displacement in the Americas was held in Mexico, under the auspices of the UN Representative on IDPs, the Brookings Institution and the government of Mexico, and several steps to respond to internal displacement were proposed, but so far the efforts have benefited refugees more than IDPs.

Over time, governments and international actors in Peru and Guatemala have shifted to targeting poor populations as a whole rather than recognising IDPs as people with special needs. IDPs may have similar needs to other shantytown dwellers and landless populations, but the blurring of categories risks denying IDPs protection, restitution and compensation rights.

Colombia is currently the only country in the region with UN programmes specifically targeting IDPs.

Asia

Some 2.7 million people were estimated to be internally displaced by violence and human rights abuses in Asia at the end of 2005, many of them trapped in long-lasting conflicts with few prospects for political solutions that would allow for their sustainable return and reintegration. The most notable exception in 2005 was the peace deal to end the conflict in Aceh (Indonesia) which could eventually pave the way for the return of large numbers of IDPs. More than 300,000 people are estimated to have been newly displaced during the year, most of them in the Philippines and Burma, but also in Nepal and India. Return movements were observed in the Philippines and – on a smaller scale – in a number of other countries of the region, although return conditions generally were not conducive to durable reintegration, mainly due to continued insecurity and lack of infrastructure and social services. Overall, the decrease of the total number of people internally displaced by conflicts in the region – a trend observed since 2001 – continued during 2005. In comparison, the number of refugees originating from Asia stood at 3.1 million.

In most of the 11 Asian countries monitored by the IDMC, armed conflicts between governments and rebel movements fighting for autonomy or control of the state remained the primary cause of displacement. Competition over land and resources and the exclusion and marginalisation of ethnic or religious minorities from the economic development process are at the heart of many of the conflicts of the region. Burma remained the worst internal displacement crisis in Asia, with at least 540,000 IDPs trying to survive virtually without external assistance or protection. Large-scale displacement accompanied by human rights violations also occurred in Nepal, the Philippines and India. The IDP situations in Afghanistan, Bangladesh, Sri Lanka, and Uzbekistan remained largely unchanged with little or no displacement, but also few if any returns.

Conflict-induced displacement in Asia is dwarfed by the magnitude of forced population movements caused by development projects and natural disasters, including the October 2005 south Asia earthquake affecting millions of people, and the Indian Ocean tsunami, which displaced 1.8 million people in Asia alone.

Conflict patterns and main causes of displacement

During the last decades, Asia has been the scene of a multitude of armed conflicts, ranging from interstate war and sectarian and ethnic conflict to guerrilla warfare and organised crime. These conflicts nevertheless share some common patterns that can be traced back to a common colonial legacy and incomplete state-building processes, which have created nations often characterised by a weak civil society and profound social and economic inequalities, where ethnic and indigenous minorities have been politically, socially and economically marginalised.

While economic development has been followed by improved living standards and increased levels of democratisation in several countries of the region in the last two decades, the exclusion of social and ethnic minorities from the economic and political development process has also led to sharpening perceptions of inequality and injustice. Compounded by the rapid

economic, social, and demographic transformation taking place in the region over the last decades and by increased competition over land and resources, many of the tensions have led to horizontal or vertical conflicts between rival ethnic or religious groups or between the state and rebel groups fighting for autonomy or control of the state. In Nepal, for example, the Maoist rebels have managed to capitalise on the frustration of a rural population completely left behind in a development process from which only a small elite has benefited.

The forced assimilation of minorities and relocation policies involving large population movements have often directly caused displacement or have planted the seeds of future conflicts. State-run relocation programmes after the Second World War in Indonesia, Bangladesh (Chittagong Hill Tracts) and the Philippines (Mindanao), aimed at increasing control over territory,

A woman at Chaman Babrak, a settlement for IDPs in North Kabul. Since the end of the Taliban regime, many returning refugees found their homes destroyed, forcing them to live in small settlement camps. (Photo: Lana Slezic)



have all directly contributed to creating demographic and socio-economic changes heightening ethnic and religious tensions. In north-eastern India, migrant influxes and land disputes have led to the emergence of militant groups fighting for autonomy. Yet another example is Turkmenistan, where relocation decrees resulted in the forced displacement of political dissidents and ethnic minorities. Furthermore, in some cases, the political predominance and economic success of state-sponsored migrants have led to stigmatisation by the local population and open conflicts leading to displacement.

In most countries affected by internal displacement, people have above all fled fighting between governments and rebel movements struggling for autonomy or secession from a central state perceived as exploitative and unwilling to take the interests of their region or ethnic group into account. This has been the case in Burma, Sri Lanka, Indonesia (Aceh, Papua), Indian-administered Kashmir, Bangladesh and the Philippines (southern island of Mindanao). In some cases, such as in Burma, the Philippines or Indonesia, government armies have been the main displacement agents as they try to weaken the resource base of insurgents. The US-led “war on terror” has in some cases further exacerbated existing conflicts as it has been used by

governments as a justification to step up military operations against rebel groups labelled as terrorists. Operations carried out with reference to the “war on terror” led to new displacement in Pakistan and the Philippines.

Some IDPs have been victims of repeated displacement because they live near rebel strongholds where fighting regularly takes place. The continued presence of armed groups near their homes is both an obstacle to return and a major element of uncertainty for those who have decided to do so and have tried to re-establish a livelihood. This is the fate of many people living in the Muslim-populated areas of Mindanao where fighting between the government and separatist rebels has displaced nearly one million people in 2000 and 400,000 three years later. Some communities have been affected twice, with their houses and livelihood yet again destroyed by the fighting.

In Asia, millions more are displaced due to development projects that have been initiated to meet increased demands for energy resources and water. There are cases where dam-building and other infrastructure projects have ousted entire villages without respect for the rights of the inhabitants and often with only partial or no compensation. The main victims of

Displaced women and their children in makeshift shelters at Kirin Khola IDP camp in Nepal. (Photo: Tomas van Houtryve)



such projects are the poor, indigenous and marginalised groups.

Natural disasters are a major cause of displacement in Asia as well. The Indian Ocean tsunami which hit several Asian countries in December 2004 displaced 1.8 million people, and the south Asia earthquake in October 2005 affected millions in Pakistan, India and Afghanistan, displacing an unknown number of people. In addition, millions of people lose their homes every year to floods, especially in south Asia.

New displacement in 2005

The Philippines was the country with the largest number of people newly displaced during 2005. Altogether more than 160,000 people were forced to flee their homes because of fighting between government forces and various rebel groups in Mindanao. Many of the newly displaced returned to their homes soon after fighting abated, but there were still some 60,000 IDPs in Mindanao at year's end. Most people were displaced in February when government forces launched a massive attack on Muslim rebel positions on the island of Sulu, stronghold of the Moro National Liberation Front (MNLF). The clashes lasted for several weeks and displaced more than 85,000 people. Armed encounters with other Muslim rebel groups such as the Moro Islamic Liberation Movement (MILF) – the largest

rebel group of the country – and the communist NPA also caused new displacement during the year, mainly in the Muslim-populated areas of Mindanao. However, despite such incidents, the ceasefire agreed upon between the government and the MILF in July 2003 continued to hold relatively well during the year with both sides confident of reaching a final peace agreement in 2006.

In Burma, the military government's objective of increasing control over minority areas through a policy of forced assimilation and repression of autonomy movements has resulted in decades of conflict that has displaced and devastated the lives of hundreds of thousands of civilians. At least 540,000 people were internally displaced as of October 2005, either in hiding or in relocation sites, including some 87,000 people newly displaced due to conflict or human rights abuses between May 2004 and May 2005 alone. Relations between ethnic groups and the government generally deteriorated following the ousting in October 2004 of the reformist Prime Minister Khin Nyunt by hardline factions within the army. This presaged an increase in raids against ethnic groups along the border with Thailand, as well as the western border with Bangladesh.

The human rights situation in Nepal continued to markedly deteriorate during 2005, with both the government and the Maoist rebels stepping up their

military activities and committing widespread abuses against civilians. In February 2005, King Gyanendra seized total control of the state's institutions and declared a state of emergency, suspending all civil liberties and intensifying the war with the Maoist rebels. Although the state of emergency was lifted a few months later, many restrictions remained in place. The hard-line approach pursued during 2005 to deal with the insurgency and the subsequent deterioration of the situation is likely to have led to an increase of the rural exodus towards the main cities and to India. In April 2005, some 30,000 people fled their homes in the southern district of Kapilvastu following violence caused by government-supported vigilante groups. A temporary ceasefire, unilaterally declared by the rebels in September, helped to reduce the level of violence, but both sides continued to commit human rights violations, including abductions and killings of civilians. In the first days of 2006, with no sign that the government would reciprocate the truce, the rebels announced the end of the ceasefire and the full-scale resumption of their armed struggle against the monarchy.

In north-east India, conflicts over homeland and skirmishes between ethnic rebel groups continued to displace people during 2005, especially in the states of Assam and Manipur. In Assam, at least 40,000 people were displaced during November and December 2005 due to fighting between the Karbi and Dimas tribes.

Little information is available on the situation of the displaced in Papua, but it is believed that counter-insurgency military operations initiated at the end of 2004 in the central highlands have continued during 2005. Thousands of Papuans have reportedly been forced to seek refuge in the jungle with no access to food or basic services¹¹³. A UNDP mission concluded in August 2005 that widening social disparities and growing tensions between the local population and settlers had increased the potential for conflict in the region¹¹⁴.

Human rights and humanitarian needs

In general, IDPs across the continent receive inadequate assistance and live without any established or predictable source of support.

In Sri Lanka, many IDPs live in over-crowded and under-funded "welfare centres" in the north and east of the country. Surveys have concluded that displaced people in "welfare centres" face serious psycho-social problems such as high rates of suicide, dependency attitudes, loss of self-esteem, alcoholism and depression.

Also, displaced people still face safety risks although violence has generally subsided since the 2002 ceasefire. Security concerns affecting internally displaced people included extra-judicial killings, arbitrary detentions and harassment by soldiers at checkpoints. Sri Lanka was already hosting some 360,000 IDPs prior to the Indian Ocean tsunami, which killed some 30,000 people in the country and displaced over half a million. While most tsunami victims received adequate help, relief organisations did not have access to a large number of IDPs in the Vanni region, which is controlled by the Liberation Tigers of Tamil Eelam (LTTE) rebels; many IDPs there were also affected by the tsunami. An aid-sharing deal between the Colombo government and the LTTE, which would have enabled aid money to reach the Vanni, fell through due to heightened political tensions. The UN and aid organisations repeatedly criticised the fact that tsunami victims had easier access to aid than conflict victims. With tensions increasing at the end of 2005, an early resolution of the aid issue and finding durable solutions for Sri Lanka's IDPs seemed unlikely.

The humanitarian needs of the displaced were generally accompanied by protection concerns. In some countries, governments provided little if any protection to the displaced and were sometimes themselves the perpetrators of human rights violations. Where this was the case, such as in Burma or in Papua, IDPs were forced to seek refuge in the jungle where they remained without any access to basic services or to food for extended periods of time.

In Burma, an estimated 92,000 internally displaced are hiding in the forests where living conditions are extremely harsh. Many displaced do not receive any external assistance and are deprived of all basic services. They are exposed to hunger, inadequate shelter and lack of medical services. However, the internally displaced and other conflict-affected populations have also developed a range of coping strategies. A survey by the Thailand Burma Border Consortium found that IDPs have developed early-warning systems, threat management practices, child protection measures and strategies for avoiding landmines¹¹⁵.

The conflict between Maoist rebels and the government in Nepal, which has seen more than 12,000 people killed and hundreds of thousands displaced, has had a particularly negative impact on children. Fear of being forcibly recruited into Maoist forces or sent to "political education" classes have prompted many parents to send their children away to safer areas, mainly to the major cities and to neighbouring India. Forced

to work to survive in urban areas, many of these children do so in exploitative conditions and are reportedly exposed to high risks of sexual violence. It is estimated that some 40,000 children have been internally displaced in the past 10 years, with 10,000 to 15,000 only in 2005. In July 2005, a report by Save the Children estimated that the number of children who flee to India every year could reach 70,000¹¹⁶.

In India, reports from relief camps for IDPs in Assam and Tripura have documented that the displaced face hunger and lack educational and medical facilities.

Slow return due to protracted conflicts

While major repatriation operations were launched in 2002 in the three countries most affected by displacement in Asia in recent years – Afghanistan, Indonesia and Sri Lanka – return during 2005 has been slow. This has been a trend since mid-2003. The reasons are manifold, but slow reconstruction, unresolved land and property disputes, volatile security situations and lack of assistance and self-reliance opportunities are the main reasons why return has not moved forward as hoped.

In Afghanistan, fewer than 8,000 IDPs returned during 2005, as compared to some 20,000 in 2004, 70,000 in 2003 and 400,000 during 2002. Many of those who returned in 2002 and 2003, including returning refugees, did not manage to re-integrate successfully. In the light of reduced humanitarian and reconstruction operations since 2003 and throughout 2005, the sustainability of the return movements of IDPs and refugees remains questionable. Apart from insecurity and a lack of economic opportunities, the main problems faced by returnees and displaced people were issues related to land and property. An estimated 153,000 people remained displaced in Afghanistan, with the largest concentration in the south of the country near Kandahar. While violent attacks were on the increase in the south and east, successful parliamentary elections in September 2005 and a gradual improvement of the security situation in many parts of the country have raised hopes for renewed donor commitment.

Return movements remained also very limited in Sri Lanka during 2005 due to ongoing tension between government forces and the LTTE in the north and east. Generous aid distribution to tsunami victims has

caused widespread concerns about insufficient aid provided for the equally needy people displaced by the conflict. Some 380,000 people have returned in 2002 and 2003, albeit often not in safety and dignity. Apart from landmines, returning IDPs face safety threats, property dispossession, landlessness and a lack of basic infrastructure and basic services. A political solution to the conflict is a prerequisite for renewed international reconstruction engagement and the dignified return of the remaining 350,000 IDPs.

With the exception of Papua, Indonesia is now largely in a post-conflict recovery phase with no new significant displacement recorded during 2005. Although there are officially no IDPs left in the country since the government's re-classification of the remaining displaced people as "vulnerable" in January 2004, tens of thousands of people, mainly in Maluku province and Central Sulawesi, were reportedly still waiting for a government termination or empowerment grant in 2005. Return to Central Kalimantan was still reported as problematic for Madurese IDPs living in East Java, mainly because of the continued hostility of the local population, while the situation appeared more hopeful for the Javanese displaced from Aceh to North Sumatra. While bringing death and destruction in its wake, the tsunami also paradoxically contributed to ending Aceh's longstanding armed conflict. A peace deal was struck between the GAM rebels and the Indonesian government in August 2005, and in December the rebels officially put an end to their 30-year-long struggle.

In the Chittagong Hill Tracts of Bangladesh, the internally displaced from the civil war that ended in 1997 continue to await a solution to continuing land disputes. In December 2005, the IDMC undertook a fact finding mission in Bangladesh. One of the conclusions from the mission is that the risk of internal displacement in the country is rising as minorities face increased persecution and continue to lack protection from the authorities.

In Indian-administered Kashmir, violence and sabotage acts by separatist militants continue to hamper the return of the between 250,000 and 350,000 displaced Kashmiri Pandits who have fled the Kashmir Valley since 1989 due to persecution, killings and massacres. In Pakistani-administered Kashmir, the conflict-affected population is believed to have returned to their villages after the ceasefire between the two



A displaced Afghan family sits around a fire in a destroyed building in Kabul, Afghanistan. (Photo: Reuters/Ahmad Masood, courtesy www.alertnet.org)

countries. It was unclear at the time of writing to what extent the earthquake of October 2005 affected their reintegration.

National and international response

The response provided by national authorities to the crisis of internal displacement in the Asia-Pacific region continued to vary greatly from one country to another. While a number of Asian governments view internal displacement caused by conflict as a strictly internal problem, others have requested external aid to assist the internally displaced population.

The governments of Sri Lanka, Afghanistan, Indonesia and the Philippines have all collaborated with the international aid community to provide assistance to the internally displaced in their respective countries. This cooperation with the international community has generally been accompanied by the formulation of IDP strategies to assist in the protection and assistance given to the displaced and their return to their homes. In a positive development during 2005, Nepal, which so far had provided a very limited and discriminatory assistance to its displaced population, made steps to

improve its response. Towards the end of the year, the government initiated the drafting of an IDP policy.

In Sri Lanka, the international community, with UNHCR as UN lead agency for internal displacement, engaged actively in dialogue and coordination with the government. However, widespread coordination problems and the fact that the government and the LTTE could not reach an agreement with regard to tackling the protracted IDP situation impeded the return process. These problems must also be seen in the context of an increasingly radicalised Sri Lankan government and rising political instability. The allocation of unspent tsunami-funds to conflict IDPs will remain an issue during 2006.

During 2005, the Afghan government continued to collaborate with the UN in an effort to implement the national IDP plan adopted in April 2004, which aims at promoting the return and reintegration of IDPs by 2007. The plan envisages the reintegration of the displaced through area-based development plans benefiting the displaced as well as the host communities. National and local authorities were expected to take over from international agencies the full responsibility for the displaced by the end of 2006.

In some cases, national governments denied all humanitarian access to internally displaced populations which means that very little is known about the actual displacement situation. This has been the case in South Waziristan, Pakistan, where both media and humanitarian actors have been barred from documenting the human suffering caused by security operations by Pakistani troops against Taliban and al-Qaeda fighters believed to be hiding in the region. In Papua, travel bans imposed by the military to some areas affected by displacement have restricted the conducting of needs assessments and reportedly prevented humanitarian assistance from reaching the IDPs.

Despite increasing international pressure, the government of Burma continued to deny any involvement in forced displacement and remained unwilling to accept any external assistance for the displaced. In December 2005, UN Security Council members received a closed door briefing on the situation in Burma and several Western governments, among others the US, are pushing for continued UN scrutiny. The leading regional organisation, the Association of Southeast Asian Nations (ASEAN), also confronted the military junta by demanding the release of detained opposition leader Aung San Suu Kyi and other political prisoners and steps to "expedite" the restoration of democracy.

IDPs in Uzbekistan and Turkmenistan remained largely ignored by the international community. Partly due to government travel restrictions in both countries and due to the highly politicised context that encompasses much of Central Asia, international agencies operating in Turkmenistan and Uzbekistan have been unable to assess the protection and assistance needs of IDPs. As the governments were the sole agent of displacement in both contexts, international agencies fear that raising sensitive political and human rights issues with relevant national authorities could endanger their programmes or even their presence in the two countries.

Contrary to European, African or American regional organisations which have endorsed or acknowledged the Guiding Principles on Internal Displacement, none of Asia's regional organisations have done so. In general, Asian regional organisations do not intervene or engage in mediation in internal conflict situations, even faced with situations which could create region-wide instability such as the Maoist insurgency in Nepal, the Muslim insurgency in southern Thailand, the recent political violence in Uzbekistan, Islamic rebel violence in the southern Philippines and instabilities in Indo-

nesia caused by Islamist and separatist movements. However, ASEAN's decision in December 2005 to send a ministerial delegation to Burma to assess the political and human rights situation may indicate a shift in the organisation's policy.

The United Nations plays an essential role in helping many Asian governments assist their displaced populations. In countries where it has had a strong involvement over the past years, such as Afghanistan, Sri Lanka, Indonesia and to a lesser extent the Philippines, the UN continued during 2005 to provide material and technical support while also, where possible, starting to slowly hand over responsibilities of some rehabilitation and recovery programmes to national or local authorities.

While the UN did not address internal displacement situations in countries with governments opposed to external involvement in their IDP crises, including in India, Burma and Uzbekistan, it stepped up its response elsewhere in the region. In Aceh and Sri Lanka, the massive humanitarian operations launched in the wake of the tsunami also benefited people displaced by conflict, despite clear inequities in aid distribution between tsunami and conflict IDPs in both countries. In response to the deterioration of the humanitarian and human rights situation in Nepal, the UN reinforced its presence in the country during the year and, in October, launched Nepal's first Consolidated Appeal.

Europe

The number of IDPs in Europe has slowly gone down over the past years. This trend continued in 2005. At year's end, some 2.8 million people were internally displaced in Europe, some 200,000 fewer than in 2004. The decrease was mainly due to a drop in figures in the Russian Federation and Bosnia and Herzegovina. Europe still has twice as many IDPs as refugees, with a refugee population originating from the region of 1.3 million.

The region is characterised mainly by situations of protracted displacement with an average length of displacement of 13 years. Most countries affected by internal displacement in the region still have significant IDP populations of several hundred thousand people, with the exception of Armenia, Macedonia and Croatia where IDPs number in the hundreds or thousands.

The year 2005 has not brought significant changes in Europe's ten internal displacement situations compared to previous years: return movements have remained limited, and living conditions of IDPs, especially in collective accommodation, remain precarious with limited support from authorities to facilitate local integration. No major new displacement affected the region although small-scale forced population movements were still taking place in Azerbaijan, Chechnya and Kosovo.

Causes and background of displacement

Internal displacement in Europe is the result of armed conflicts and widespread violations of human rights such as ethnic cleansing. The main sub-regions affected by internal displacement are the Caucasus and the Balkans. However, Turkey and Cyprus also host significant populations of internally displaced persons.

Displacement in the Caucasus and the Balkans is the result of conflicts which erupted in the 1990's following the disintegration of the Soviet Union and Yugoslavia. The new political context led a number of nationalities or minority groups who felt oppressed by the previous regime to claim their right to self-determination through independence or secession movements. Resistance against such movements resulted in multiple internal conflicts, often with the intervention or support of a foreign country, which in turn caused the forced displacement of millions of people, mostly along ethnic or religious lines.

In the Balkans, with the exception of Kosovo, the political and security situation has stabilised, and significant return has taken place over the past years despite adverse return conditions. Returns were therefore limited in 2005, also because the bulk of those who wanted to return have already done so. In other European countries affected by internal displacement, the absence of political progress in resolving the con-

flicts that caused displacement and persistent insecurity in areas of origin continued to prevent any significant return movements.

The decrease of the European IDP population in 2005 was largely due to changes in the official IDP figures for Bosnia and Herzegovina and the Russian Federation, but does not necessarily reflect a satisfactory implementation of durable solutions for the victims of forced displacement. In Bosnia and Herzegovina, a re-registration carried out in 2005 by the authorities brought IDP figures down from 310,000 to 183,000. The decrease was mostly due to the deregistration of returnees who had kept their IDP status as a safeguard in view of uncertain reintegration prospects in their home areas, and of IDPs who have decided to integrate locally rather than return. In the Russian Federation, one of the reasons for the decrease of the official IDP figure – by some 100,000 in 2005 – appears to have been the decision by the authorities to deregister IDPs who applied for compensation for destroyed properties.

While the overall number of internally displaced people in Europe has been decreasing, small-scale displacement resulting from insecurity still occurred in the region. In Kosovo, new displacements outnumbered returns in 2005¹¹⁷. In Azerbaijan, some returnees were



A displaced farmer's family home near the Armenian border with Azerbaijan. (Photo: Tim Dirven)

displaced again in 2005 because of prevailing insecurity in their home areas along the border with Armenia. Forced returns of asylum-seekers from abroad without adequate support for local integration has been identified as a potential source of internal displacement, in particular in Kosovo. In Georgia, a re-registration carried out in 2005 resulted in a slight increase in the number of displaced people. However, the increase did not result from new displacement, but was due to the inclusion of previously unregistered IDPs in the register.

Protection and assistance concerns

Protection and assistance concerns of IDPs in Europe remained largely unchanged compared to previous years. Key issues were access to social and economic rights, and living conditions. In the absence of durable solutions, displaced persons mostly live in squalid conditions in sub-standard shelters, with limited access to public and social services, and little possibilities for generating income in an often depressed economic environment.

After years of displacement, the majority of those who have not found durable solutions were among the most vulnerable individuals, such as female heads of household, the war-traumatised, war-witnesses,

elderly or handicapped people. In the absence of adequate support and counselling, their physical and mental health deteriorates and increases their vulnerability and the difficulties of local integration or return.

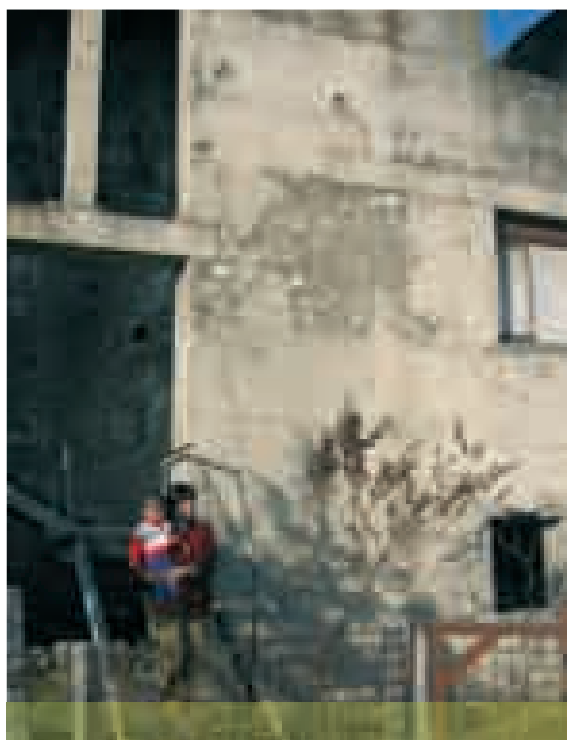
Certain groups of IDPs continued to be exposed to widespread discrimination, in particular Roma in the Balkans or IDPs from the Caucasus in the Russian Federation. Displaced Roma faced numerous administrative obstacles with regard to accessing social and economic rights, in particular their right to property since they often lack the required documentation. In Serbia and Montenegro, it is estimated that up to 30,000 Roma IDPs are not counted or assisted as such¹¹⁸. Generally, Roma IDPs continued to be disproportionately affected by displacement. Roma strategies were adopted by Croatia and Serbia and Montenegro during the year, but they have not shown significant results so far.

Lack of support to local integration

Living conditions of IDPs in Europe remained sub-standard and often deteriorated further in 2005. This was partly due to the reluctance of the authorities in countries such as Serbia and Montenegro and the Russian Federation to facilitate local integration for fear of removing incentives for return, which they

consider as the only durable solution. In Serbia and Montenegro, for example, collective centres have not been sufficiently maintained or have been closed down without offering long-term solutions to IDPs.

During his 2005 visits to the Balkans and Georgia, the UN Special Representative on the Human Rights of IDPs, Walter Kälin, called for greater support to local integration by national authorities and highlighted the responsibility of the authorities to offer adequate accommodation and access to socio-economic rights. He also underlined the need to take special and adapted measures for extremely vulnerable individuals.



A displaced woman with her child in front of a destroyed house in Rukhi/Samegrelo region, Georgia (Photo: Katharina Röhl)

In Azerbaijan, the government has continued its efforts to improve living conditions of IDPs during 2005, bringing the IDP poverty rate closer to that of the resident population. Using revenues from oil sales, the government demolished camps, constructed semi-permanent accommodation in rural areas, and started rehabilitating collective centres for urban IDPs¹¹⁹.

Return

Return movements remained insignificant in 2005 in most European countries affected by internal displacement. Insecurity in return areas and lack of progress with regard to resolving the conflicts that caused the displacement in the first place were the main reason for the low return rates. Where return was possible, conditions were rarely conducive to sustainable reintegration.

In Kosovo, minority return – the number of IDPs returning to areas where they are a minority – continued to decrease in 2005 to a little over 2000, a trend that has been observed since the outbreak of ethnic violence directed against non-Albanians in March 2004¹²⁰. Although the security situation had improved in the first half of 2005, the UN Secretary-General's decision to open formal negotiations on the future status of Kosovo led to another increase of tensions in the province towards the end of the year.

Return of IDPs from Ingushetia to Chechnya has also slowed down dramatically in 2005, with only 1,500 Chechens having gone back in the first eight months of the year¹²¹. This was the result of a persistently high level of violence in Chechnya, as well as the discontinuation of the government's property compensation scheme. In many instances, returnees ended up displaced in temporary accommodation centres within Chechnya.

In Turkey, displaced villagers identify security concerns as one of the key obstacles to return. Many villagers do not wish to return because they fear that they would be forced to flee again due to military operations, armed clashes or harassment by security forces or the Kurdish rebel group PKK. The continued operation of the "village guards" is a particular security concern for IDPs. The village guards, hired by the government to secure villages from the PKK, have also been responsible for killings and attacks on IDPs attempting to return home in the past, and continue to occupy some displaced people's farmland and homes. During 2005, an increase in clashes between PKK and government forces has rekindled fears of renewed violence. However displaced people are also reluctant to return because of inadequate infrastructure in villages and lack of government assistance¹²².

In some of the Balkan countries such as Bosnia and Herzegovina, Croatia and Macedonia, security condi-

tions were more conducive to return. In these countries, the bulk of returns had already taken place in previous years which explains, at least in part, the small number of returns in 2005. However, the sustainability of the reintegration of returnees remained threatened by numerous obstacles ranging from a lack of reconstruction assistance and difficulties relating to the repossession of properties to restricted access to social and economic rights and limited possibilities for minorities to receive education in their language or in a curriculum free of material they considered offensive.

Bosnia and Herzegovina illustrates the difficulty of sustainable return in such situations. After celebrating its millionth return in 2004, Bosnia and Herzegovina is now faced with a significant drop in return figures. Some 5,000 IDP returns were registered during 2005 compared to almost 18,000 in 2004¹²³. This reflects the fact that returns are now residual and that most of those who wanted to return have already done so. The remaining IDPs are among the most vulnerable, including female-headed households, those with war-related trauma and witnesses of war crimes who are hesitant to return due to the presence of war criminals and rampant discrimination. Lack of harmonised legislation regarding social benefits also constitutes an obstacle to return for those who risk losing entitlements or having them reduced by going back to their pre-war home.

Repossession or reconstruction of property remains a significant obstacle to return in many countries of the region including Croatia, Cyprus, Georgia, the Russian Federation, Serbia and Montenegro and Turkey. This issue has received attention from regional organisations or bodies such as the European Union, the Council of Europe and the European Court for Human Rights. In Croatia, progress regarding property repossession and reconstruction is slow and particularly affects ethnic Serb IDPs. In Turkey, the implementation of the compensation law adopted in 2004 continued, and the deadline for filing claims was extended. However, the commissions set up under the law were criticised for the low rate of applications processed during the year, as well as the high number of claims rejected, mainly for lack of ownership evidence. In the Russian Federation, the authorities discontinued a compensation scheme that was aimed at reconstructing property destroyed during the war in Chechnya, but was considered poorly implemented and stained with widespread corruption.

International response: the role of regional organisations

With the Russian Federation considered the only country in Europe with an ongoing humanitarian emergency situation in 2005, donor interest has dwindled over the years despite a continued high level of unmet humanitarian needs in most of the post-conflict situations. The ongoing transition towards a stronger development focus has continued.

In the context of this transition, European regional organisations have become increasingly involved in IDP issues. Their influence has proven effective in modifying national IDP policies, in particular in Turkey and the western Balkans where the prospect of accession to the European Union has spurred increased domestic efforts to address situations of internal displacement. In determining criteria and monitoring progress at the national level, the European Union has relied on the expertise of organisations such as the Organisation for Security and Cooperation in Europe, the Council of Europe and the International Criminal Tribunal for the former Yugoslavia (ICTY), creating synergies between the work of the various organisations.

In Croatia, cooperation with ICTY and measures improving sustainability of return, such as the implementation of housing care programmes for former occupancy rights holders and respect for minority rights, are part of the political criteria against which the country's progress towards meeting EU accession requirements is measured¹²⁴. In Bosnia and Herzegovina, progress on the EU accession process has been conditional on the country accepting a police and defence reform, placing those institutions under state control instead of the ethnically-dominated entities. The wide powers devoted to the entities had facilitated the development of ethnically-biased policies and have been a factor limiting minority return.

Turkey was urged by the EU "to intensify its efforts to promote safe return, including through the removal of obstacles such as inadequate infrastructure, landmines and village guards"¹²⁵. In 2005, the Commission noted that there had been "very little progress in dealing with the situation of internally displaced persons, and in particular their return to villages in the Southeast"¹²⁶, and also urged Turkey to ensure fair and speedy compensation to those IDPs¹²⁷. Macedonia

obtained candidate status in December 2005, rewarded for its efforts to contain ethnic tensions that caused internal displacement through legislative reforms improving representation of minority groups.

The Council of Europe has also played a significant role in monitoring state responses to internal displacement, mainly through its Parliamentary Assembly, the European Court of Human Rights, the Commissioner for Human Rights and the regular monitoring reports covering the implementation of obligations by member or accession states. In 2005, the Council of Europe decided to create a working group which will examine member countries' compliance with the Guiding Principles on Internal Displacement. The working group is being created within the Ad Hoc Committee of Experts on Legal Aspects of Territorial Asylum, Refugees and Stateless Persons. More specifically, the Council of Europe urged the Georgian government to adopt without further delay a legal framework for the restitution of ownership and tenancy rights, or compensation for property lost during the 1990-1994 conflicts, and to ensure the equal rights of internally displaced persons¹²⁸.

The European Court of Human Rights (ECHR) has been an important instrument for IDPs to obtain remedy for violations of their rights and compel states to respect their international commitments. In past years, the Court has issued numerous judgments condemning violations suffered by displaced people such as inhuman and degrading treatment, the right of displaced people to return and to property, and respect for family life and home. In 2005, the ECHR issued another landmark judgment, relating to Greek Cypriots displaced from northern Cyprus, which further improved the protection of the property rights of IDPs¹²⁹. While previous rulings required Turkey to provide remedy in form of compensation, the 2005 judgement insisted on actual restitution of the claimant's property, saying that by not envisaging restitution the 2003 compensation law supposed to address such cases cannot be considered an adequate remedy. The ruling applies to 1,400 similar cases currently pending before the ECHR.

Middle East

In comparison with other world regions, the Middle East has a small IDP population, with an estimated 2.1 million internally displaced people. This total figure has remained almost unchanged from previous years, despite ongoing population movements. However, in the absence of systematic IDP registration, figures are unreliable. The Middle East counts more than double the number of refugees than IDPs, with a total refugee population of approximately five million people originating from the region¹³⁰. The region is characterised mainly by situations of protracted displacement which are the result of conflicts spanning several decades.

Over half the IDP population in the region, some 1.3 million people, live in Iraq, making it the most visible internal displacement situation in the Middle East. Iraq continued to present an enormous challenge to national authorities and humanitarian organisations helping displaced populations. It is the only country in the region characterised by ongoing large-scale population displacement and return movements. In other parts of the Middle East, the situation for the internally displaced remained largely unchanged despite some positive changes in the policy of several governments in the region during 2005.

Causes and areas of displacement

Internal displacement in the Middle East is the result of human rights abuses and internal and international conflicts along political, religious and ethnic lines as well as competition over land and natural resources. The conflicts and subsequent displacement in the region have also led to the resettlement of populations along ethnic or religious lines.

In Iraq, tens of thousands of families were forced to flee their homes during 2005 as a result of military and security operations by Iraqi and US-led multinational forces, primarily in areas considered to be insurgent strongholds. An increase in violence by armed militias and criminal groups, and intra-communal tensions also caused people to flee their homes during 2005.

The situation for long-term IDPs in Iraq also did not improve during 2005. The majority of the estimated 1.3 million IDPs were displaced over a period of four decades during the regime of Saddam Hussein. The regime, dominated by Sunni Arabs, pursued a policy of “Arabisation”, expelling non-Arabs – Kurds, Assyrians and Turkmen – from the oil-rich region of Kirkuk and replacing them with ethnic Arabs in an attempt to increase control over the region’s natural resources by changing its ethnic character. The government also uprooted large numbers of Shia Arabs in the southern marshlands as punishment for their assumed opposition to the regime at the end of the first Gulf War in 1991. In 2003, the US-led incursion in Iraq and the fall of Saddam Hussein’s government allowed those

forcibly displaced under the “Arabisation” campaign as well as other displaced Iraqis to return. However, the return of Kurds to Kirkuk and surrounding areas also led to the displacement of the Arabs relocated to these areas under the previous regime.

As of April 2005, almost half a million internally displaced Iraqis had returned to their places of origin; yet many of these people continue to be in a situation of displacement due to ongoing conflict, ethnic and religious tensions, and human rights abuses, as well as lack of basic services, housing and infrastructure in return areas. UNHCR has recognised that Iraqi refugees spontaneously returning to the country may be returning to a situation of internal displacement¹³¹.

In Lebanon, prospects for return or compensation increased in 2005, as the government drafted a new strategy and allocated funds to resolve the internal displacement situation in the country. Hundreds of thousands of people were internally displaced by the civil war in Lebanon from 1975 to 1990. Tens of thousands of them have not returned because of factors including difficult socio-economic conditions and lack of support for reintegration. The general security situation deteriorated in 2005, with a number of political assassinations and bombings occurring before and after the withdrawal of Syrian troops from Lebanon in April 2005. In addition, shooting incidents between the Lebanese militia Hezbollah and Israeli forces were reported from the contested Shebaa Farms area.



A Palestinian woman carries her belongings while leaving her house in Rafah, southern Gaza Strip, during a raid by the Israeli army. (Photo: Reuters/Mohammed Salem, courtesy www.alertnet.org)

In Israel, there was no significant improvement of the situation of IDPs in 2005. Several thousand people remained displaced since the 1948 war. Meanwhile, in the south of the country, Bedouin villagers continued to be under pressure from the authorities to leave their land. The Israeli government aims to build permanent settlements for the Bedouin living in the villages it considers illegal. The programme, which provides some compensation of displaced Bedouin, has met with strong resistance from the Bedouin community which generally does not wish to move.

Although Israel passed legislation to end punitive house demolitions in the Occupied Palestinian Territories during 2005, other types of demolitions were continued throughout the year. In the context of the current Israeli-Palestinian conflict, several thousand Palestinians have been displaced from their homes in the Palestinian Territories in the course of house demolitions carried out by Israeli security forces. An estimated 250 Palestinian structures were destroyed in the West Bank in 2005¹³².

The construction of the separation wall, begun by the Israeli government in 2002, has also caused displacement, although no comprehensive assessment is available. While the Israeli government has not accepted the July 2004 advisory opinion of the International Court of Justice, which declared the wall illegal under international law, it has rerouted some sections of the barrier during 2005 to comply with the judgments of

the Israeli Supreme Court of February 2005. However the UN reports that the new route puts about 10 per cent of the West Bank and East Jerusalem between the Green Line and the barrier, and could cut off tens of thousands of people from their livelihoods and basic services with the risk of forcing them to leave their homes¹³³. The Palestinian Bureau for Statistics estimates that nearly 15,000 people had been displaced between the beginning of construction of the separation wall and the end of May 2005¹³⁴. According to the UN, the Wall risks cutting off some 55,000 Palestinians from East Jerusalem¹³⁵.

A shift in Syrian national policy during 2005 raised prospects for the return of some internally displaced people to the area of Quneitra near the Golan Heights. However the likelihood for a broader return to the Golan Heights remained small in view of the continuing control of the territory by Israel. The Syrian government says that some 300,000 people were displaced as a result of the 1967 war with Israel.

Human rights and humanitarian situation

The lack of improvement in the human rights situation in Iraq dominated international attention throughout the year. High levels of violence affected the ability of all Iraqis, displaced or not, to exercise their basic human rights. There were widespread reports of viola-

tions of human rights and humanitarian law by members of the multinational forces and by insurgents, while investigation and prosecution of these abuses were rare. Law enforcement agencies and the judicial system were unable to respond adequately to past and current human rights violations suffered by many of the displaced. There remain substantial challenges to meet the humanitarian needs of all groups of displaced people, in particular their need for housing and clean water. A major issue for IDPs living in public buildings is the threat of eviction.

In the Palestinian Territories, Israel's withdrawal from the Gaza Strip and parts of the northern West Bank during the year have not yet led to an improvement in the humanitarian situation. The UN reported the high poverty rate of slightly over 60 per cent and the lack of physical protection of civilians and their property as primary concerns in the Palestinian Territories¹³⁶.

While in Iraq and the Palestinian Territories the displaced generally belong to the poorest and most vulnerable parts of society, in Lebanon, Israel and Syria IDPs do not have significant humanitarian needs beyond those of the rest of the population. However, IDPs from the Golan Heights continued to face difficulties in exercising their right to family life, as most displaced Syrians were unable to contact their family members living in Israeli-occupied Golan.

Durable solutions

Throughout the year, while spontaneous returns occurred in some countries of the Middle East, most people remained displaced due to ongoing conflict, lack of shelter, property disputes, lack of financial resources to rebuild their homes and inadequate basic services¹³⁷.

Lack of political will and government capacity as well as poor security conditions continued to be among the main obstacles to achieving durable solutions for the internally displaced people in the region. The identification of durable solutions is also hampered by the lack of comprehensive information and surveying of displaced populations. For example, in Iraq and Lebanon, it is difficult to determine to what extent many people displaced from rural areas have integrated into urban areas and whether they should still be considered internally displaced.

Solving shelter, property and land issues is essential in order to establish durable solutions for IDPs in the region. In Iraq, a property claims commission was

established in 2004 to provide restitution or compensation to displaced people who were dispossessed of their property by the former regime. However, it remained unclear what solutions would be provided to the many people whose cases fell outside the scope of the Commission, including those whose property was destroyed under the Anfal campaign or in the Marshlands in the 1990s. National authorities also failed to identify solutions for internally displaced people who are being faced with eviction from public buildings. Durable solutions also need to be identified for a large majority of displaced Iraqis who were not property owners prior to being displaced.

The lack of a political solution to the conflicts between Israel, Syria and the Palestinian Authority continued to hinder the possibility of large-scale return movements. In February 2005, Israel announced an end to its policy of demolishing the houses of suspected suicide bombers, but it continued to destroy houses on other grounds, including for permit violations, military purposes and for the establishment of new settlements¹³⁸. There was no clear compensation scheme for Palestinians whose homes have been destroyed in these cases or whose land has been confiscated for the building of the West Bank Barrier. In Israel, there has been no positive development for IDPs, following the refusal by the Israeli Supreme Court in 2003 to allow displaced villagers to return to their former homes in the north.

National and international response

Governments in the region assumed only partial responsibility for the protection of and assistance to those displaced within their territories. Several governments in the Middle East also host significant refugee populations, placing further strain on their already limited capacity to respond to their own displacement situations¹³⁹. In two countries in the region, Lebanon and Iraq, ministries have been established and tasked with finding solutions for the displaced. In Iraq, the Ministry of Displacement and Migration provided assistance to the displaced and continued to work on developing national policy and legislation to address the situation of IDPs, but its ability to provide protection and assistance was constrained by insecurity and a lack of capacity. In Lebanon, the government announced a new plan and funding for the Ministry of the Displaced to resolve the issue of internal displacement in the country. In Syria, the government announced a housing strategy to rebuild homes for people displaced from Quneitra, an area regained by Syria in 1974, which could lead to the return of an

estimated 50,000 people. In the south of Israel, the national government intensified pressure on Bedouin communities to leave their villages and to resettle in towns in 2005. However, following an appeal to the Supreme Court by organisations representing some of these Bedouin villages, the Interior Ministry granted recognition and municipal services to one of them in 2005.

At the regional level, there was no coordinated response to the problem of internal displacement. The League of Arab States is the only body which fulfils a regional function, but Israel and Iran are not included. The League of Arab States has focused its energies mostly on the issue of displaced Palestinians, although in 2005 it also supported reconciliation efforts in Iraq¹⁴⁰.

The UN has focused its attention on Iraq and the Palestinian Territories where the needs are the greatest. Iraq is the only Middle Eastern country where the UN applies its own IDP policy, known as the collaborative response. However, implementation of the policy has been severely restricted, including by the complex security situation in the country. In the Palestinian Territories, the UN does not assist the displaced as IDPs, but provides substantial humanitarian assistance to vulnerable people falling under the mandate of the UN Relief and Works Agency (UNRWA). This group includes many, but not all of those who have been internally displaced within the Palestinian Territories. In Israel and Syria, where the IDPs' humanitarian needs are minimal, the UN does not address the situation of the displaced population at all. In Lebanon there is one UN programme to support the return and reintegration of the displaced.

In Iraq and the Occupied Palestinian Territories, there were instances of the authorities blocking or slowing down delivery of humanitarian assistance to displaced people, allegedly for security reasons. In Iraq, military operations and security measures carried out by Iraqi and US-led multinational forces intended to control insurgents impeded humanitarian organisations from accessing and delivering assistance to vulnerable displaced populations. In the Palestinian Territories, Israeli authorities continued to enforce restrictions on freedom of movement of Palestinians as part of a government policy to protect Israeli citizens from insurgent attacks. Health and humanitarian workers were regularly blocked, denied, or delayed access to vulnerable populations¹⁴¹.

IDP Country Figures

Countries	Number of IDPs	Estimate date	Source	Comments
Afghanistan	153,192-200,000	Sept 2005; Aug 2004	UNHCR; Government	
Algeria	1,000,000	2002	EU	Cumulative (since 1992). Some reports of return, although anecdotal.
Angola	61,700	Dec 2005	UN-TCU	
Armenia	8,000	March 2005	NRC	
Azerbaijan	558,387	Dec 2005	State Committee on Refugees and IDPs	
Bangladesh	500,000	2000	Chittagong Hill Tracts Commission	
Bosnia and Herzegovina	183,400	Oct 2005	Government	
Burundi	117,000	May 2005	OCHA	
Central African Republic	Undetermined			UN estimated number of IDPs at 200,000 in mid-2004; 2005 CAP does not include any reference to IDPs anymore.
Colombia	1,706,459-3,662,842	Feb 2006; Oct 2005	Red de Solidaridad Social (Govt); CODHES (NGO)	Government figure cumulative since 1994; NGO figure cumulative since 1985
Côte d'Ivoire	500,000	Nov 2005	CAP 2006	
Croatia	4,900	Oct 2005	UNHCR	
Cyprus	210,000	May 2003	UN FICYP	
Democratic Republic of the Congo	1,664,000	Oct 2005	UN OCHA	
Eritrea	50,509	Aug 2005	UN OCHA	
Ethiopia	150,000-265,000	Dec 2004; April 2005	UN OCHA; UN CTE	
Georgia	240,000	Nov 2004	OCHA	
Guatemala	242,000	May 1997	UNFPA	
Guinea	82,000	Feb 2002	Government; UNFPA	
India	at least 600,000	Jan 2006	IDMC	Compiled from various figures available
Indonesia	342,000-600,000	March 2005; Aug 2004	NHRC;SIDA	
Iraq	1,300,000	2005	UN Country Team	The figure is cumulative and based on a UN Habitat survey published in 2001
Israel	150,000-300,000	July 2001; Nov 2002	Cohen; BADIL	The higher figure includes displaced Bedouin
Kenya	381,924	Aug 2005	UN OCHA	
Lebanon	50,000-600,000	Feb 2005	Government; US DOS	
Liberia	48,000	Jan 2006	UNMIL	Actual figure of IDPs still in camps believed to be nearer 70,000 (i.e. including those without valid ration cards)

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Macedonia	770	Nov 2005	Ministry of Labour and Social Policy	
Mexico	10,000-12,000	June 2003	ICRC; Center for Human Rights Fray Bartolomé de la Casas	
Myanmar (Burma)	540,000	Oct 2005	Thailand Burma Border Consortium	Estimate relates to the eastern border areas only and does not include significant numbers of IDPs in the rest of the country
Nepal	100,000-200,000	March 2003; June 2005	UN/NGO IDP Survey; IDMC	
Nigeria	200,000	Nov 2004		West Africa CAP 2005
Pakistan	20,000	Jan 2006	Human Rights Commission of Pakistan (HRCP)	Estimate relates to Balochistan and does not include an unknown number of people displaced in Waziristan.
Palestinian Territories	21,142-50,000	Nov 2004	UNRWA; NGO BADIL	Lower estimate only includes IDPs evicted mainly by house demolitions since 2000; higher figure cumulative since 1967
Peru	60,000	June 2004	ICRC	
Philippines	60,000	Aug 2005	UNDP	
Republic of Congo	100,000 - 147,000	Nov 2004	UN OCHA	
Russian Federation	265,000	Jan 2006	UNHCR	
Rwanda	Undetermined			
Senegal	64,000	June 2003	IOM	
Serbia & Montenegro	247,400	Oct 2005	UNHCR	Estimate does not include an unknown number of Roma not registered as IDPs
Somalia	370,000-400,000	Aug 2005	UN OCHA	
Sri Lanka	341,175	July 2005	UNHCR/MRRR	
Sudan	5,355,000	Aug 2005	UNOCHA/IDMC	Compiled from various figures
Syrian Arab Republic	305,000	Oct 2004	Government	
Togo	3,000	OCHA	October 2005	
Turkey	355,807- over 1 million	Aug 2005	Government; NGOs	The government figure only includes people evacuated by the security forces
Turkmenistan	Undetermined			No estimates available
Uganda	1,740,498	Dec 2005	UN OCHA	Not including large numbers of unassisted IDPs
Uzbekistan	3,400	June 2003	IFRC	
Zimbabwe	569,685	July 2005	UN	Not including people previously displaced by land acquisitions or political violence. Also not including people recently displaced due to losing their businesses or other forms livelihood.
Global Total	23,700,000	Dec 2005	IDMC	Estimate based on the analysis of available country figures and additional information on displacement and return trends.

This table includes the most recent available figures on IDPs displaced by conflict. Most of the figures are estimates. Where a range is indicated, the first source/date refers to the lower figure and the second to the higher one, unless the range comes from a single source. More statistics and analyses of available figures can be found in the Internal Displacement Profiles included in the IDP database (www.internal-displacement.org).

Endnotes

- ¹ Unless otherwise indicated, all IDP-related statistics in this report are based on data and analysis drawn from the IDMC's IDP database (www.internal-displacement.org) which includes comprehensive profiles of all countries affected by internal displacement, as well as a multitude of other resources relating to the issue of internal displacement.
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